

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 06/17/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearings for Lines 5 and 17. This CMC is **continued** to trail the hearing on Summary Judgment / Summary Adjudication calendared for July 22, 2026.

2. 9:00 AM CASE NUMBER: C25-00609

CASE NAME: VICKI RUDD VS. THERESA CALLEJAS

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 11. If the tentative ruling for Line 11 is not contested, this CMC is continued to September 11, 2026 at 8:30 a.m. in Department 16.

3. 9:00 AM CASE NUMBER: C25-01588

CASE NAME: MUKESH ADVANI VS. NIARE FEASTER

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 12. Since Line 12 is not opposed, this CMC is **continued** to trail the hearing on the Motion to Quash Service of Summons and Complaint to be heard on November 25, 2026 at 9:00 a.m. No appearance is required on June 17, 2026.

4. 9:00 AM CASE NUMBER: C25-01899

CASE NAME: BRENTWOOD SUNSET 2010, LLC VS. VIRGINIA PETERSON

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 14. If the tentative ruling for Line 11 is not contested, this CMC is continued to September 11, 2026 at 8:30 a.m. in Department 16.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MARK D. ROSENBERG, ESQ.

FILED BY: DALY, MICHELLE

TENTATIVE RULING:

Summary

Plaintiff Michelle Daly's ("Plaintiff") counsel, Law Offices of Mark D. Rosenberg ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Plaintiff on February 11, 2026 ("Motion"). The Motion is **granted** as set forth herein.

Background

In this case, Plaintiff alleges medical malpractice against Defendant Michael Vistnes, M.D. arising out of facial laser treatment. Withdrawing Counsel filed this Motion, supported by a declaration claiming that attorney-client relationship has suffered an "irreparable breakdown" in communication and trust. Withdrawing Counsel also represents that Plaintiff has retained "contract counsel," which presents a conflict. Withdrawing Counsel can no longer represent Plaintiff. Plaintiff refused to retain

other counsel and does not consent to withdrawal.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination “upon the consent of both client and attorney,” or “upon order of the court, upon the application of either client or attorney, after notice from one to the other.” Withdrawing Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. A trial date is not set. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, to retain “contract counsel” or to represent herself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The Court makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney’s Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on February 11, 2026. The withdrawal is effective immediately.
3. Withdrawing Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at her last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference for December 15, 2026, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that she is ordered to appear by zoom or in person.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court’s Order (MC-053) and the Change of Address form (MC-040).

6. 9:00 AM CASE NUMBER: C23-01684
CASE NAME: STAR JOSHUA VS. THE COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:

TENTATIVE RULING:

Summary: Entry of Judgment was filed on April 20, 2026. This hearing is **vacated**. No appearance is required on June 17, 2026.

7. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, summary adjudication filed by plaintiffs David Hammond and Hal Seibert. For the reasons set forth, the motion for summary judgment and in the alternative, summary adjudication is **denied**.

Background and Brief Procedural History

On October 11, 2023, plaintiffs David Hammond and Hal Seibert filed a complaint with four causes of action, including quiet title, declaratory relief, and interference with an easement. They filed the operative First Amended Complaint ("FAC") on September 6, 2024 alleging four causes of action. On June 2, 2025, Plaintiffs filed a request for partial dismissal, dismissing their second and fourth causes of action for declaratory relief. Only the first cause of action for quiet title and the third cause of action for interference with an easement remain.

All defendants, including the "Doe" defendants, have been dismissed from the action except for the current owner of the property subject to the action, defendant DeEtte R. Sipos, as an individual and as Trustee of the DeEtte R. Sipos Trust Under the EHR QPRT Dated 3/26/2003, and "All Persons Unknown, Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Burdened Property Described in the Complaint Adverse to, or a Cloud Upon, the Public Easement Right Claimed Herein." (6/24/2025 US Bank Dism.; 8/5/2025 Bart Wooten Dism.; 10/22/2025 Doe Def. Dism.)

Plaintiffs moved for a preliminary injunction which the Court heard and denied on February 7, 2024. (2/7/2024 Order.) Plaintiffs renewed their motion for a preliminary injunction with new evidence obtained after the original preliminary injunction hearing. Weighing the evidence before the Court on that renewed motion, the Court granted the request for preliminary injunction, providing limited interim relief by ordering a 2.4 foot portion of the fence on the Sipos Property from the Wooten Property line to be removed based on evidence of a "hole in the wall," a narrow gap between the end of the concrete or stucco wall on the Sipos Property and the Wooten Property that allowed bicyclists to access the Cut-Through, among other evidence. (7/29/2025 Order After Hearing [capitalized terms defined in the OAH].)

Legal Standards for Ruling on Plaintiff's Motion for Summary Judgment

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

A plaintiff as the moving party does not need to disprove the defendant's defenses; a plaintiff moving for summary judgment meets its burden of showing there is no defense to the claim if it proves each element of the cause of action that would entitle the plaintiff to judgment on that cause of action in its favor. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849, 853; *Paramount Petroleum Corp.*

v. Superior Court (2014) 227 Cal.App.4th 226, 241; Code Civ. Proc. § 437c(p)(1).) "Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc. § 437c(p)(1).)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

In deciding a motion for summary judgment, the Court views the evidence in the light most favorable to the opposing party, drawing "all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of the motion are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180 [quoting *Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392].) (*See also* Code Civ. Proc. § 437c(d) ["[S]ummary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact."].) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1483.)

Procedural Issue: Defendant's Additional Facts and Objection Thereto

Defendant Sipos filed a Response to Plaintiffs' Separate Statement of Undisputed Material Facts ("Def. Resp.") and a separate document with Defendant's Additional Facts ("AFs") she contends are material and raise triable issues. Plaintiffs object to Sipos not including her AFs in the Defendant's Response and filing them in a separate pleading. They argue the separate pleading violates California Rule of Court, Rule 3.1350(f)(3).

Rule 3.1350(e) lists the separate pleadings which "must" be included in the opposition to a motion for summary judgment or summary adjudication, including the opposing party's separate statement in opposition to the motion. (Cal. R. Ct., Rule 3.1350(e)(2).) Rule 3.1350(f) cited by Plaintiffs specifies the contents and form of the opposing party's separate statement which provides that "[i]f the opposing party contends that additional material facts are pertinent to the disposition of the motion, those facts must be set forth in the separate statement." (Cal. R. Ct., Rule 3.1350(f)(3).) While Defendant's AFs should have been included in Defendant's Response to Plaintiffs' Separate Statement, the Court fails to see any prejudice to Plaintiffs from noncompliance with the Rule. The Court will consider the

AFs as presented; Plaintiffs' objection to the AFs on this ground is **overruled**.

Procedural Defect: Deficient Citations to Evidence in Plaintiffs' Separate Statement

Plaintiffs filed approximately 62 declarations in support of the motion. The Hammond Declaration is lengthy, consisting of 22 paragraphs and attaching Exhibits A through O. UMFs 7, 8, 24, and 25 cite most, but not all, of the declarations, without reference to any specific paragraphs or exhibits but instead followed by the word "*passim*." Defendant objects to failure to cite specifically to the supporting evidence. The Court agrees that at a minimum with reference to the lengthier Hammond Declaration, the supporting citations should identify the specific paragraphs and/or exhibits Plaintiffs contend support the UMF. Nevertheless, the Court has considered the evidence.

Requests for Judicial Notice

A. Plaintiffs' Request for Judicial Notice and Defendants' Evidentiary Objections

Plaintiffs ask the Court to take judicial notice of a number of documents. (Pl. RJN Exhs. A-L.) Plaintiffs ask the Court to take judicial notice of certain recorded documents, including the Minor Subdivision Map MS 263-78 ("MS 263-78") with the easement dedication central to the case (Pl. RJN Exhs. A and D), Subdivision Map MS 154-76 ("MS 154-76") (Pl. RJN Exh. E), and the grant deed to Sipos of the residential property Plaintiffs contend is subject to the disputed easement (Pl. RJN Exh. L). Plaintiffs' unopposed request for judicial notice of Pl. RJN Exhs. A, D, E, and L is **granted**, subject to the limitations on judicial notice. (Evid. Code § 452(c); *Cheveldave v. Tri Palms Unified Owners Assn.* (2018) 27 Cal. App. 5th 1202, 1216, fn. 5 ["We have taken judicial notice of a deed reflecting the Association was granted property within Riverside County. By granting the Association's request for judicial notice, we have noticed the deed exists, but we have not noticed the truth of its contents. [Citation omitted.]"].)

The Court also **grants** Plaintiffs' unopposed request for judicial notice of a stipulated judgment and order in the related case, *Tiernan v. Diablo Community Services District, et al.*, Contra Costa Superior Court Case No. MSC17-02529 ("Tiernan Action") (Pl. RJN Exhs. F and G), and the Court's July 29, 2025 Order After Hearing on Plaintiffs' renewed motion for a preliminary injunction (Pl. RJN Exh. J), subject to the applicable limitations on judicial notice of orders under the case law. (Evid. Code § 452(d); *South Lake Tahoe Property Owners Group v. City of South Lake Tahoe* (2023) 92 Cal.App.5th 735, 751 [court may take judicial notice "of the truth of results reached" but not of "the truth of hearsay statements in decisions."].)

Plaintiffs request judicial notice of another recorded document, a "Corner Record" prepared by a surveyor hired by Plaintiffs (Mark H. Wehber) and which states on its face it was "examined and filed" by a county surveyor on October 29, 2024. (Pl. RJN Exh. K.) Defendant objects to the request (see Def. Evid. Obj. No. 3), and in response, Plaintiffs state that "they do not seek to establish disputed facts through judicial notice, but to present the Court with official records" that are part of the history of the easement. (Pl. Resp. to Obj. p. 3, ll. 16-18.) The Court **grants** the request for judicial notice of the existence of the document as a part of relevant government records and not the truth or proper interpretation of the content of the record. (Evid. Code § 452(c); *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal. App. 4th 182, 193-194.) (See also *Horne v. District Council 16 Internat. Union of Painters & Allied Trades* (2015) 234 Cal. App. 4th 524, 535 ["While we take judicial notice of the OLMS fact sheet and letters as public records, we do not accept the truth of the statements contained

therein, which are obviously subject to dispute. [Citations omitted.]").)

Plaintiffs also request judicial notice of an exchange of letters between the East Bay Trails Council and the Contra Costa County Public Works Department related to the proposed subdivision reflected in MS 263-78 (Pl. RJN Exh. B), and two letters from the State Department of Parks and Recreation dated January 22, 2024 to unidentified "Home Owners" (Pl. RJN Exhs. H and I). Defendant objects to the Court taking judicial notice of those documents to the extent the request asks the Court to take judicial notice of the truth of the content of the documents. (Def. Evid. Obj. to Pl. RJN Obj. Nos. 1 and 2.) Defendant also objects to Exhibit B on the ground the Finch letter was from a private citizen and not a record created by a government employee, such that Evidence Code section 1280 does not apply, and the Gray letter is not admissible for lack of a declaration authenticating the letter or laying a foundation for its consideration by explaining Gray's role in connection with the review of the proposed subdivision reflected in MS 263-78. (See Def. Evid. Obj. to Pl. RJN Obj. No. 1.)

Plaintiffs assert they are not asking the Court to take judicial notice of the truth of the content of any of the statements in Plaintiffs' RJN Exhibits B, H or I, but only the existence and content of the public records. Plaintiffs do not address Defendant's objection based on the lack of authentication of Exhibit B, and that the Finch letter to the Public Works Department is not an act of a public employee, but rather an inquiry from a private citizen. Notably, in ruling on the renewed motion for preliminary injunction, the opponents of the motion did not object to the admission of Exhibit B. Plaintiffs have not cited any declaration which authenticates Exhibit B, including the Gray letter. In the face of the current evidentiary objections to Exhibit B, the Court **sustains** Plaintiffs' objections and **denies** the request for judicial notice of Exhibit B on those grounds.

As to Exhibits H and I, the Court will grant the request for judicial notice to the extent of the existence of the documents but not the truth or proper interpretation of the content of the letters which are reasonably disputable. (Evid. Code § 452(d); *Ragland, supra*, 209 Cal. App. 4th at 193-194; *Horne, supra*, 234 Cal. App. 4th at 535.) The Court notes that the decision *Gallup v. Superior Court* (2015) 235 Cal.App.4th 682 cited by Defendant was ordered depublished by the California Supreme Court and is not citable. (*Gallup v. Superior Court* (June 10, 2015), No. S225924, 2015 Cal. LEXIS 4253 at *1; Cal. R. Ct., Rule 8.1115(a).)

B. Defendant's Request for Judicial Notice

Defendant asks the Court to take judicial notice of three grant deeds (Def. RJN Exhs. 1-3) and of Plaintiffs' First Amended Complaint ("FAC") filed September 6, 2024 (Def. RJN Exh. 4). The Court **grants** the unopposed request. (Evid. Code §§ 452(c) and (d); *Cheveldave, supra*, 27 Cal. App. 5th at 1216, fn. 5; *South Lake Tahoe Property Owners Group, supra*, 92 Cal.App.5th at 752 [court takes judicial notice of existence of documents in court file, but not truth of allegations].)

Analysis

Plaintiffs' motion is supported in part by a Separate Statement ("SS") of Undisputed Material Facts ("UMFs") which is segregated into three parts: UMFs 1-17 in support of Plaintiffs' motion for summary judgment; UMFs 18-34 in support of Plaintiffs' motion for summary adjudication of the first cause of action for quiet title, and UMFs 36-44 in support of Plaintiffs' motion for summary adjudication of the third cause of action for interference with an easement. Plaintiffs' motion is also supported by the request for judicial notice addressed above and approximately 62 declarations, most from persons

who declare that they have used the Disputed Easement (more fully defined below) from varying times dating to the 1980s and earlier. In opposition to the motion, in addition to Defendant's Response to the SS and AFs, Defendant has filed declarations by Sipos, Bart Wooten, and Dominic Signorotti, as well as a request for judicial notice addressed above.

Plaintiffs have objected to portions of Defendant's declarations. Those objections are addressed below. Defendants objected only to portions of Plaintiffs' request for judicial notice. In issuing this ruling, the Court has not relied on any evidence to which objections have been sustained.

A. Undisputed Material Facts

Defendant does not dispute a number of the facts in Plaintiffs' SS. Plaintiffs are members of the public who are claiming that a trail depicted in MS 263-78 as a "25' riding and hiking easement," also depicted in a survey attached as Exhibit 1 to the DeKnoblough Declaration, is a public easement (the "Disputed Easement"). (UMFs 1, 3, 18, 20, 36.) There is no dispute that the Disputed Easement is located on the real property commonly known as 2354 Alameda Diablo in Diablo (the "Sipos Property") which is owned by Defendant. (UMFs 2, 4, 19, 21.) It is undisputed that MS 263-78 contains a statement identified as "owner's certificate" by Milton and Pattie Perlow that states "The area marked '25' riding and hiking easement' is dedicated to the Department of Parks and Recreation of the State of California, or its designee, for public use for riding and hiking." (UMF 5.) There is no record that the parks department or its designee accepted the offer of dedication made in MS 263-78. (UMFs 6, 23, 35.) (Though the Defendant's Response to the SS omits UMF 35, UMFs 6 and 23 have the same text and were listed as undisputed.) There is no dispute that Sipos purchased the Sipos Property with knowledge of this litigation and the Disputed Easement. (UMF 15.)

Certain facts are not genuinely disputed, or they are only partially disputed. The Court does not find a genuine dispute exists as to UMFs 10, 27, and 37, as there is no dispute that the Court's July 17, 2024 Order in the Tiernan Action "set aside" the U.S. Bank Stipulated Judgment. (Pl. RJN Exh. G, PDF p. 24 of 26.) Though the Court's tentative ruling states the Court agreed with the moving parties that the Stipulated Judgment "is void," the Court accepts only the truth of the result reached and not any hearsay statements in the order. (*South Lake Tahoe Property Owners Group, supra*, 92 Cal.App.5th at 751.) The Court agrees with Defendant that the material fact is that the Stipulated Judgment was set aside, and that fact is not disputed.

There is also no genuine dispute that the Sipos Property is also burdened by a state owned 60-foot right of way on Mt. Diablo Scenic Boulevard as well as utility easements. (UMFs 16, 17, 33, 34, 43, 44.) Defendant disputes the relevance or materiality of the facts and notes these facts are outside the allegations of the FAC. (*Doe, supra*, 23 Cal.App.5th at 661 and *Teselle, supra*, 173 Cal.App.4th at 161 [issues material to summary judgment motion are bounded by the pleadings].) Plaintiffs specifically alleged the 60-foot right of way in the FAC. (FAC ¶¶ 10, 12.) (*See* UMFs 16, 33, 43.) The Court agrees with Defendant that the FAC does not allege the Sipos Property is burdened with utility easements, including ones that are in the same general area as the Disputed Easement, but their existence is not disputed by Defendant. (UMFs 17, 34, 44.)

B. Material Facts Genuinely Disputed

As relevant to the quiet title cause of action, Defendant raises genuine disputes as to UMFs 7, 8 and 9 (and UMFs 24, 25, and 26), both through her Response to those UMFs, and based on AFs 6 through

11. First, the Court agrees with Defendant that UMFs 7 and 8 (and UMFs 24 and 25) are legal conclusions not statements of fact. Those UMFs address the easement being "accepted by implication through public use" and the "public's use constituting implied acceptance of the express easement dedication," which are ultimate conclusions of law the Court must make based on the facts and evidence, as set forth in the legal analysis below. The facts are details regarding the use of the Disputed Easement after the offer of dedication that are sufficient under applicable law to support the legal conclusion that the use constitutes implied public acceptance of the express dedication. In any event, Defendant raises factual dispute as to (a) the scope of the offer of dedication, specifically the scope of the use by the public provided for in the offer of dedication, (b) whether the public use was consistent with the use offered in the dedication, and (c) whether the past owners of the Sipos Property near the time the offer of dedication was made revoked the offer by placing fencing, hedges and other obstructions. Among other things, evidence regarding Condition No. 15 to the approval of the proposed minor subdivision map MS 263-78 defined and limited the terms of the offer of dedication, which did not include bicycle use, and whether there was fencing on the Sipos Property since the house was constructed in 1980 that blocked the Disputed Easement and required those using it to access the trail through the Wooten Property. (Signorotti Decl. Exh. 6; Wooten Declaration ¶¶ 2-5.) The Wooten Declaration disputes declarations asserting there was no fencing until later in the 1980s rather than beginning in 1980 when the residence on the Sipos Property was built, and his declaration indicates that users of the Disputed Easement went over his adjoining property to access it. (Wooten Decl. ¶¶ 2-5.)

As to the facts pertaining to the interference with easement cause of action, certain of the facts Defendant lists as disputed essentially dispute whether legally there is an "obstruction" of the Disputed Easement or "actionable interference" with the Disputed Easement but not necessarily that there is steel fencing or other material located in the area subject to the Disputed Easement. (UMFs 11-14, 28-31, 38-41 and Def. Resp. to UMFs 11-14, 28-31, and 38-41.) Defendant contends the UMFs regarding the hedge row obstructing the Disputed Easement are outside the allegations of the FAC and what the FAC alleges is obstructing the Disputed Easement. (Def. Resp. to UMFS 14, 31, 41.) (See also FAC ¶¶ 18 [defining the "Obstructions"] and 19.)

C. Quiet Title – 1st C/A

1. Legal Framework

Code of Civil Procedure section 760.020 authorizes an action to "establish title against adverse claims to real or personal property or any interest therein." (Code Civ. Proc. § 760.020(a).) The Court in *Ridec LLC v. Hinkle* (2023) 92 Cal.App.5th 1182 explained, "To obtain a quiet title judgment under the Act, the plaintiff must (1) file a verified complaint that names, as defendants, (a) '[all] persons having adverse claims' to the plaintiff's title, and that includes persons whose claims are 'of record,' whose claims are 'known to the plaintiff,' or whose claims are 'reasonably apparent from an inspection of the property,' and (b) 'all persons unknown, claiming any legal or equitable right, title, estate, lien, or interest in the property described in the complaint adverse to plaintiff's title, or any cloud upon plaintiff's title thereto' " ([Code Civ. Proc.] § 762.060, subds. (b) & (a); see § 761.020); (2) record a lis pendens regarding the pendency of the quiet title action in the county recorder's office where the property is located (§ 761.010, subd. (b)); and (3) establish entitlement to a quiet title judgment with

'evidence of [the] plaintiff's title' rather than 'by default' (§ 764.010), although the courts are split as to whether this requires an evidentiary hearing at which a defaulted defendant may participate [citations omitted] or merely a prove-up hearing at which a higher quantum of evidence must be produced [citation omitted]. [Citations omitted.]" (*Id.* at 1195-1196.)

The Court has addressed at some length in two prior rulings on Plaintiffs' motions for preliminary injunction the applicable legal authority regarding offers of dedication of land for public recreational use. Civil Code section 1009(b) provides that there can be no implied dedication by public use of private property after March 4, 1972, the effective date of the statute, unless "an express written irrevocable offer of dedication of such property to such use, made by the owner thereof in the manner prescribed in subdivision (c) of this section, which has been accepted by the county, city, or other public body to which the offer of dedication was made, in the manner set forth in subdivision (c)." (Civ. Code § 1009(b).) Civil Code section 1009(c) provides: "In addition to any procedure authorized by law and not prohibited by this section, an irrevocable offer of dedication may be made in the manner prescribed in Section 7050 of the Government Code to any county, city, or other public body, and may be accepted or terminated, in the manner prescribed in that section, by the county board of supervisors in the case of an offer of dedication to a county, by the city council in the case of an offer of dedication to a city, or by the governing board of any other public body in the case of an offer of dedication to such body." (Civ. Code § 1009(c).) Government Code section 7050 provides in part that an offer of dedication "executed, acknowledged, and recorded in the same manner as a conveyance of real property" when recorded is "irrevocable."

The Court has set forth the applicable law regarding offers of express dedication that may be accepted by implied acceptance in its two prior rulings on Plaintiffs' motions for preliminary injunction. The Court reiterates its conclusion based on applicable law that an express offer of dedication, as was undisputedly made in MS 263-78, can be impliedly accepted by use consistent with the dedication offered. (*Mikkelson v. Hanson* (2019) 31 Cal.App.5th 170, 178-179; *Biagini v. Beckham* (2008) 163 Cal.App.4th 1000, 1009 [stating a statutory dedication which fails because the public agency has not accepted the offer of dedication made under the Subdivision Map Act can operate as a common law dedication when accepted by the public]; Civ. Code § 1009(b).) In *Prout v. Department of Transportation* (2018) 31 Cal.App.5th 200, the Court found such an implied acceptance after an express offer of dedication made in 1990, though without addressing Civil Code section 1009(b). (*Id.* at 208 [affirming judgment for CalTrans on plaintiff's inverse condemnation claim, finding a completed common offer of dedication by acceptance through use of the property offered for dedication]. (See also *Biagini, supra*, 163 Cal.App.4th at 1009.)

In *Mikkelson*, the Court explained that where there is an offer of dedication, including an express offer, " 'acceptance on the part of the public is necessary to a valid dedication'," which may be actual or implied. (*Mikkelson, supra*, 31 Cal.App.5th at 176 [*dicta*, as there was no express written offer of an irrevocable dedication of the property in that case, so the statutory exception stated in Civil Code section 1009(b) did not apply].) Acceptance is " 'actual when formal acceptance is made by the proper authorities, and implied, when a use has been made of the property by the public for such a length of time as will evidence an intention to accept the dedication.' [Citation omitted.]" (*Id.* [quoting *County of Inyo v. Given, supra*, 183 Cal. at 418].) "[T]he use which implies an acceptance must occur within a reasonable time after the offer is made. [Citation omitted.] What constitutes a reasonable time

depends upon the circumstances in each case. [Citation omitted.] The sufficiency of a use to constitute acceptance as well as the timeliness thereof ordinarily are matters which involve questions of fact." (*McKinney v. Ruderman* (1962) 203 Cal.App.2d 109, 116 [emphasis added].) In addition, in *Biagini*, the Court also affirmed the trial court determination that an express irrevocable offer of dedication can be revoked under common law principles so as to terminate the public's ability to accept the offer by public use, though the offer must remain open for acceptance by the public entity to which it has been offered. (*Id.* at 1016-1017.)

In addition to disputes over whether there was acceptance of the offer of dedication, the parties dispute the scope of any use granted by the offer of dedication, even if it was accepted as defendants contend. If the offer of dedication was only for use limited to hiking and equestrian riding, not bicycle riding, then it is not clear that bicycle riding qualifies for implied acceptance. Contract principles generally govern offers of dedication, including in this case whether the easement was granted to cover bike riding or only horseback riding. (*Shenson v. County of Contra Costa* (2023) 89 Cal.App.5th 1144, 1172.) " If the language is clear and explicit in the conveyance, there is no occasion for the use of parol evidence to show the nature and extent of the rights acquired.' [Citations omitted.] (*Van Klompenburg v. Berghold* (2005) 126 Cal.App.4th 345, 349 [emphasis added, quoting *Scrubby v. Vintage Grapevine, Inc.* (1995) 37 Cal.App.4th 697, 702].) (*See also* Civ. Code § 806 ["The extent of a servitude is determined by the terms of the grant, or the nature of the enjoyment by which it was acquired."]; Civ. Code § 1066 ["Grants are to be interpreted in like manner with contracts in general, except so far as is otherwise provided in this article."].)

"The circumstances existing at the time of and giving rise to the conveyance determine the nature and extent of the easement. [Citations omitted.] The use may change or increase, but only so long as the change does not materially increase the burden on the servient tenement. [Citations omitted.] Any permissible change would be limited 'to such uses as the facts and circumstances shown were within the reasonable contemplation of the parties at the time of the conveyance.' [Citation omitted.] (*Friends of Hastain Trail v. Coldwater Development, LLC* (2016) 1 Cal.App.5th 1013, 1031 [emphasis added].) (*See also* Code Civ. Proc. § 1860.) If the scope of an express easement is unclear, the scope includes " 'such uses as the facts and circumstances show were within the reasonable contemplation of the parties at the time of the conveyance.' [Citation omitted.]" (*Camp Meeker Water System, Inc. v. Public Utilities Com.* (1990) 51 Cal.3d 845, 867, superseded by statute on another ground, as stated in *Pacific Bell v. Public Utilities Com.* (2000) 79 Cal.App.4th 269, 281.)

2. Triable Issues of Material Fact Preclude Granting Summary Judgment and Adjudication of the Quiet Title Cause of Action

The Court finds there are triable issues of fact pertinent to the determination of the quiet title cause of action. The Court highlights some of those issues below.

a. Condition 15 Related to Approval of the Minor Subdivision

Sipos argues that expanding the Disputed Easement to include bicycling violates the condition on which the subdivision reflected in MS 263-78 was approved, such that any expansion is legally impermissible. Sipos points to documentation related to the approval of the Perlows' proposed minor subdivision of their land to create what has become the Sipos Property, in particular, Condition 15 which was one of the conditions granting the approval of the minor subdivision that led ultimately to the recording of MS 263-78 with the offer of dedication of the Disputed Easement. (Signorotti Decl.

Exh. 6.) The condition restricts the use of the easement to pedestrian and equestrian traffic. (Signorotti Decl. Exh. 6.)

Sipos cites provisions of the Subdivision Map Act, including Government Code sections 66473, 66474, and 66499.37 pursuant to which Sipos argues that once conditions on the subdivision are approved, they are "locked." (Opp. p. 10.) Government Code sections 66473 and 66474 address when a final subdivision map can be disapproved. Subdivision (g) of Government Code section 66474 provides a subdivision map may be disapproved upon a finding that "the design of the subdivision or the type of improvements will conflict with easements, acquired by the public at large, for access through or use of, property within the proposed subdivision. In this connection, the governing body may approve a map if it finds that alternate easements, for access or for use, will be provided, and that these will be substantially equivalent to ones previously acquired by the public. This subsection shall apply only to easements of record or to easements established by judgment of a court of competent jurisdiction and no authority is hereby granted to a legislative body to determine that the public at large has acquired easements for access through or use of property within the proposed subdivision." Government Code section 66499.37 sets forth the limitation period for challenging decisions concerning approval of a subdivision.

The Court in *El Patio Investments, Inc. v. Permanent Rent Control Bd.* (1980) 110 Cal.App.3d 915 cited by Sipos quoted a prior California Supreme Court decision, *Youngblood v. Board of Supervisors* (1978) 22 Cal.3d 644, to explain that conditions imposed in a discretionary approval of a tentative subdivision map become final once the applicable local agency exercises its discretion and approves the tentative map with those conditions: " '[I]t is only fair to the developer and to the public interest to require the governing body to render its discretionary decision whether and upon what conditions to approve the proposed subdivision when it acts on the tentative map. Approval of the final map thus becomes a ministerial act once the appropriate officials certify that it is in substantial compliance with the previously approved tentative map.' [Citations omitted.]" (*Id.* at 924 [holding the city could not impose rent control conditions on a conversion of apartments to condominiums after approval of the tentative map].) (*See also* Govt. Code § 66473 [stating in relevant part, "a final map shall be disapproved only for failure to meet or perform requirements or conditions which were applicable to the subdivision at the time of approval of the tentative map"].)

In reply, Plaintiffs cite the language of Condition 15 which states in part that "Final details regarding the easement shall be determined and approved, after consultation with the State Parks Department and the applicant, by the Planning Director prior to the filing of the final map," and they argue those "final details" made the easement a "riding" easement including bicycle riding. That sentence should be read in the context of the entirety of Condition 15, which yields a plausibly different meaning. "A public riding and hiking easement shall be dedicated to the Department of Parks and Recreation of the State of California and shall connect Mt. Diablo Scenic Boulevard to Alameda Diablo across the south side of Parcel 1. Final details regarding the easement shall be determined and approved, after consultation with the State Parks Department and the applicant, by the Planning Director prior to the filing of the final map. The easement shall be restricted to equestrian and pedestrian traffic. Under no circumstances shall vehicular traffic over the easement be allowed." (Signorotti Decl. Exh. 6.) To the extent Plaintiffs contend that the "final details" including use of the term "riding" to expand the equestrian and pedestrian traffic to bicycles based on the local planning department's "consultation with the State Parks Department and the applicant," the documentation before the Court does not definitively show one way or another that the planning department's "restricted" uses were modified rather than adopted as stated, other than the offer of dedication set forth in MS 263-78. The arguments concerning the meaning of Condition 15 only highlight the disputed factual issues about

the Disputed Easement that preclude summary adjudication of the quiet title cause of action and summary judgment on the FAC.

The Court notes that if the conditions for approval of the subdivision in fact became immutable with respect to the Disputed Easement and offer of dedication once the subdivision tentative map was approved, that may raise a question as to whether in light of that theory, the offer of dedication could be revoked. The Court need not address that issue given the existence of triable issues warranting denial of the motion.

b. Conflicting Evidence on Fencing and Possible Revocation of the Offer of Dedication Before Acceptance

In ruling on a summary judgment motion, the Court is prohibited from weighing the evidence, and the Court is required to liberally construe the evidence in opposition to the motion. (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; *D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.) The testimony of one witness can constitute substantial evidence. (*Greenwich S.F., LLC v. Wong* (2010) 190 Cal.App.4th 739, 767-768 [though reversing a verdict granting lost profits as damages, court stated, "The testimony of one witness may provide substantial evidence. [Citation omitted.] Cancelled checks or official documentation of the costs incurred are not required to support the jury's award. The absence of such documentation goes to the weight of the evidence and the credibility of the witness. Those determinations are for the jury."].)

There is no dispute that the State Parks and Recreation Department to whom the offer of dedication was made never accepted the offer. The Wooten Declaration raises triable issues regarding whether the offer of dedication was impliedly revoked not long after the recording of MS 263-78, when the former owner(s) of the Sipos Property erected fencing that blocked the southern entry point to the Disputed Easement, fencing which the evidence suggests has been in place in various forms (possibly barbed wire, wooden fence, stucco or concrete fence, then metal fencing) for decades more or less since the time the residence was built in 1980. (Wooten Decl. ¶¶ 2-5; L. Scott Decl. ¶ 5 [acknowledging the area was rural but there may have been barbed wire fencing; while she says the barbed wire fencing did not inhibit her use, that was also at a time when the Wooten property was completely open and when Wooten declares people had to use his property to access the Disputed Easement].)

As the neighboring property owner and resident, Wooten can address the condition of and access to the Disputed Easement, and he can certainly address whether or not persons using the Disputed Easement were accessing the easement by traversing his property. (Wooten Decl. ¶¶ 2-5.) (*See also* L. Scott Decl. ¶ 5.) The Court cannot weigh the evidence or the credibility of testimony on a motion for summary judgment, as stated in the authorities cited above. The procedural posture of this motion is entirely different from the motions for preliminary injunction, where the Court could weigh the evidence.

c. Material Disputes Over Meaning of Terms of Offer of Dedication

The parties dispute the meaning of the terms of the offer of dedication and the scope of any use granted by the offer of dedication, including the implications of Condition 15. (Signorotti Decl. Exh. 6.) Contract principles generally govern offers of dedication, including in this case whether the easement was granted to cover bike riding or only horseback riding. (*Shenson v. County of Contra Costa* (2023) 89 Cal.App.5th 1144, 1172.) (*See also* Civ. Code § 806 ["The extent of a servitude is determined by the

terms of the grant, or the nature of the enjoyment by which it was acquired."]; Civ. Code § 1066 ["Grants are to be interpreted in like manner with contracts in general, except so far as is otherwise provided in this article."].)

The Court rejects Plaintiffs' position that the meaning of the terms used in the offer of dedication, specifically "riding," are clear and unambiguous in light of the conflicting evidence regarding the intent of the offer of dedication at the time it was made. Applying contract principles, "[p]arol or extrinsic evidence is admissible to resolve an ambiguity. [Citations omitted.] In such cases, the court engages in a two-step process: 'First, the court provisionally receives (without actually admitting) all credible evidence concerning the parties' intentions to determine "ambiguity," i.e., whether the language is "reasonably susceptible" to the interpretation urged by a party. If in light of the extrinsic evidence the court decides the language is "reasonably susceptible" to the interpretation urged, the extrinsic evidence is then admitted to aid in the second step--interpreting the contract.' [Citation omitted.]" (*WYDA Associates v. Merner* (1996) 42 Cal. App. 4th 1702, 1710 [emphasis added].) (See also *Casa Herrera, Inc. v. Beydoun* (2004) 32 Cal.4th 336 ["The parol evidence rule is codified in Civil Code section 1625 and Code of Civil Procedure section 1856. [Citation omitted.] It 'generally prohibits the introduction of any extrinsic evidence, whether oral or written, to vary, alter or add to the terms of an integrated written instrument.' [Citation omitted.] The rule does not, however, prohibit the introduction of extrinsic evidence 'to explain the meaning of a written contract . . . [if] the meaning urged is one to which the written contract terms are reasonably susceptible.' [Citation omitted.] ¶] Although the rule results in the exclusion of evidence, it 'is not a rule of evidence *but is one of substantive law.*' [Citation omitted, italics in original, underscoring added].)

The evidence is in dispute as to the meaning of the term "riding" in the recorded subdivision map, MS 263-78. In particular, as set forth above, Condition 15 of the conditions for approval of the Perlows' proposed subdivision which was the basis for the recording of MS 263-78 conditioned the approval of the subdivision on the dedication of the Disputed Easement for "equestrian riding and hiking." (Signorotti Decl. Exh. 6.) Other contemporaneous documentation also suggests a concern that an easement for an equestrian riding trail and hiking trail be granted in allowing the property to be subdivided. (Signorotti Decl. Exh. 3.)

At least one of Plaintiffs' declarants indicates that the Disputed Easement was initially used for equestrian riding, mostly by residents and people boarding their horses in Diablo, but that the equestrian use all but disappeared in the 1980s. (See L. Forman Decl. ¶¶ 3-6 [former resident, used Disputed Easement for walking and horseback riding, but by mid to late 1980s, "most horses were gone from Diablo"].) An offer of dedication of "Kay's Trail" by the Perlows in May 1982 for use for "hiking and equestrian trails," two and a half years after the Disputed Easement, raises reasonable, conflicting inferences. While Plaintiffs would argue the term "riding" was intended to be broader to include bicycling, a reasonable, conflicting inference is that the Perlows may have been willing to make dedications of their land only for purposes limited to "equestrian" riding and hiking uses, which is consistent with Condition 15 to the granting of the minor subdivision in MS 263-78, and that for the avoidance of any doubt in the later document, they used the word "equestrian" in the Kay's Trail offer of dedication. (Hammond Decl. ¶ 19 and Exh. N.)

d. Disputed Facts as to Implied Acceptance Given the Dispute Over the Meaning of the Offer of Dedication

Roughly half the declarations offered by Plaintiffs are from current or former residents of Diablo, whose use of the Disputed Easement could be inferred to be based on permissive use and neighborly accommodation, as Wooten implicitly declares he was allowing over his property. The factual nature of the dispute over the existence of implied public acceptance of the offer of dedication is highlighted by the extent of use by residents, and the fact nonresidents' use may have required permissive use of the Wooten Property to access the trail and involved bicycling which may be outside the offer of dedication. The case law indicates there is some assumption that allowing neighbor use is more permissive and being "neighborly" as opposed to opening the property to the public. (*See generally Friends of Hastain Trail v. Coldwater Development, LLC* (2016) 1 Cal.App.5th 1013, 1041 [concurrence, noting children are natural trespassers and their use does not reliably show public use]; *Friends of the Trails v. Blasius* (2000) 78 Cal.App.4th 810, 825 [addressing neighborly accommodation as opposed to use by the general public].)

There are triable issues as to whether an offer to make a public dedication of the Disputed Easement for horseback riding and hiking can be accepted by bicycle riding, as there are triable, factual disputes as to whether bicycle riding is outside the scope of the offer of dedication that was made and/or the conditions for approval of the subdivision. (*See Shenson, supra*, 89 Cal.App.5th at 1172; Civ. Code §§ 806 and 1066.) Under ordinary contract principles of offer and acceptance, acceptance of an offer with additional terms outside the offer is considered a counteroffer, not acceptance, raising triable issues of fact on the acceptance of the easement, which Plaintiffs expressly plead is for bicycle use. (*See generally Bullock v. McKeon* (1930) 104 Cal.App. 72, 79 ["In order to make an acceptance of an offer binding, it must conform to the terms of the offer and must not propose new conditions. If it does so, it is not an acceptance, but constitutes a counter offer which in turn must be accepted to become binding on the parties."].)

The Court disagrees with Plaintiffs' position that the permitted uses of the easement based on the "riding and hiking" dedication does not need to be decided to determine the quiet title cause of action and establish the existence of the easement. Plaintiffs have put at issue the use of the easement and have alleged that the use of the Disputed Easement by bicycle riding was the public's implied acceptance of the Disputed Easement. (*See* FAC ¶¶ 13-16.) Liberally construing the evidence before the Court, Condition 15 and other evidence supports a finding that the offer of dedication was for equestrian riding, and the evidence shows that there was fairly limited use of the Disputed Easement for equestrian riding after MS 263-78 was recorded, and that such use was mostly limited to homeowners in Diablo or people who boarded their horses in Diablo. (*See, e.g.,* L. Forman Decl. ¶ 6 ["By the mid to late 1980s most horses were gone from Diablo from my experience. Horse properties were subdivided and the last stables also closed. It is rare to ever see a horse on any Diablo Roads these days."]; L. Scott Decl. [boarded horse in Diablo 1979-1984].)

The Court finds the evidence (disputed) over the timing and extent of the fencing of the Sipos Property potentially blocking access from Mt. Diablo Scenic Boulevard and requiring use of the neighboring Wooten Property and at nearly the same time of limitation or elimination of most use of the Disputed Easement for equestrian riding, which was undisputedly part of the offer of dedication, indicates the offer of dedication was revoked before it was validly accepted by the public. The Court

also finds that there are triable issues requiring a weighing of evidence as to whether the use by the public as opposed to residents was sufficient to constitute public acceptance for riding and hiking as stated in the offer, as Plaintiffs' evidence regarding public use is focused almost entirely on bicyclists which may be outside the offer of dedication, with little or no evidence that members of the general public used the trail for horseback riding or hiking/walking after the offer of dedication and before the fencing may have been erected in 1980. It is not clear that the public accepted the offer of dedication if the dedication was limited to equestrian riding based on the evidence. These factual issues are disputed and interrelated.

e. Sipos' Answer

The Court rejects Plaintiffs' argument in the reply that Sipos did not assert an affirmative defense based on implied revocation of the offer of dedication. The Sipos First Amended Answer to the First Amended Complaint filed August 15, 2025 includes several affirmative defenses under various titles which each include lengthy recitations of the facts she relies on in her opposition to the motion to raise a triable issue of material fact regarding revocation of the easement. (See First Am. Ans. 2nd, 3rd, 5th, 7th, 9th Aff. Defs.) While the affirmative defenses may not have been titled "revocation," the Court regards the facts pleaded and not the labels as setting forth Sipos's defenses. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [addressing a complaint, stating "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer. '[W]e are not limited to plaintiffs' theory of recovery in testing the sufficiency of their complaint against a demurrer, but instead must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. The courts of this state have . . . long since departed from holding a plaintiff strictly to the " 'form of action' " he has pleaded and instead have adopted the more flexible approach of examining the facts alleged to determine if a demurrer should be sustained.' [Citations omitted, italics in original.]"].)

f. Scope of Easement, Including Permitted Uses, Is Integral to Rendition of Judgment on the Quiet Title Cause of Action

The Court finds other disputed facts preclude summary judgment or summary adjudication of the quiet title action. Plaintiffs' own evidence shows there is steel tube fencing and a long row of hedges inside the Disputed Easement that more or less extend over the length of the Disputed Easement, further blocking access to the 25' width of the easement stated in the offer of dedication. If the public has used only a narrow strip of the Disputed Easement, far narrower than the width stated in the recorded offer of dedication, it is not clear that a 25 foot wide easement as stated in the offer of dedication was impliedly accepted, rather than some considerably narrower portion of the Sipos Property. If only a narrow strip was used even if bicycle riding was contemplated or qualifies for implied acceptance, consistent with some of the declarants' recollections of the "hole in the wall" access to the Disputed Easement, then there are triable issues as to whether the easement as stated in MS 263-78 or something narrower was actually impliedly accepted by the public.

The Court also disagrees with Plaintiffs' position that determination of the scope of the "riding and hiking" easement is not necessary to grant judgment to Plaintiffs on the quiet title cause of action and can be decided in some form of supplemental relief after summary judgment is granted. (See MPA

ISO Mot. p. 13.) The statute and case law only allow summary adjudication if it will "fully dispose" of a cause of action. (Code Civ. Proc. § 437c(f).) The *Ridec* decision cited by Plaintiffs to support that proposition is factually inapposite. The decision held that a bona fide encumbrancer for value which relied on a quiet title judgment was entitled to retain its lien despite a subsequent successful attack on the validity of the underlying quiet title judgment, based on Code of Civil Procedure section 764.060. It rejected in passing the argument that the Court's general authority to grant "such equitable relief as may be proper under the circumstances of the case" under Code of Civil Procedure section 760.040(c) allowed the trial court to override the express provisions of Code of Civil Procedure section 764.060 to impair the rights of the bona fide lender. (*Ridec LLC v. Hinkle* (2023) 92 Cal. App. 5th 1182, 1200.)

Vanderkous v. Conley (2010) 188 Cal.App.4th 111 is similarly inapposite. The Court of Appeal held that even without a cross-complaint by the defendant, who claimed an equitable interest in the property in dispute, the trial court could award the defendant the value of her equitable interest and adjust a lot line to quiet title to a portion of the property in the defendant's favor as part of a judgment quieting legal title to another area of the property in favor of the plaintiff. (*Id.* at 112-114, 119-120 [plaintiff's argument regarding lack of a cross-complaint seeking affirmative relief "ignores the extent of the court's equity jurisdiction in a quiet title action where 'the court has jurisdiction to hear and determine all issues necessary to do complete justice.' [Citations omitted.]]").) Notably, the Court concluded that the defendant's answer which sought " 'such other and further relief as the Court may deem just and proper' " was enough to put at issue quieting title to a portion of the property in her favor against the plaintiff, and "[h]er defense also served to vest the court with the equitable power to do justice between the parties. The direction that Vanderkous compensate Conley for her quitclaim deed is obviously intended to do just that. [Citation omitted.]" (*Id.* at 120.) The cited portion of the case relied on by Plaintiffs only reinforces that the scope and extent of the easement are properly subsumed within the quiet title cause of action and relief to be granted, and that these are issues that the Court should decide as part of the determination of the quiet title cause of action. Notably, Sipos' answer contains the same language in her prayer for relief. (Sipos Ans. Prayer for Relief ¶ 3.)

Under the circumstances of this case, whether the offer of dedication encompassed more than equestrian and hiking use and whether bicycling members of the public could accept the offer of dedication by bicycle use are triable issues that are integrally related to the meaning, nature, and scope of the offer of dedication and the nature and scope of the easement that cannot be separated from Plaintiffs' claim to quiet title to the Disputed Easement.

D. Interference with Easement – 3rd C/A

The triable issues relevant to the quiet title cause of action necessarily mean there are triable issues with regard to the interference with easement cause of action. If there is no easement, if the offer of dedication was not validly and timely impliedly accepted by public use within the scope of the offer of dedication, and/or if the offer of dedication was impliedly revoked by the erection of fencing not long after the offer was made, then there cannot be unlawful interference with the easement by the "Obstructions" defined in the FAC

Conclusion and Ruling

The Court concludes there are triable issues of material fact as to the quiet title and interference with

easement causes of action for the reasons stated. Plaintiffs have not persuaded the Court that they are entitled to judgment as a matter of law based on the applicable law and evidence in the record, the conflicts in the evidence, and reasonable conflicting inferences that can be drawn from the evidence. The motion for summary judgment and for summary adjudication of the first and third causes of action is therefore **denied**.

Plaintiffs' Evidentiary Objections to Defendant's Declarations

A. Wooten Declaration

Obj. No. 1 (¶ 5): **Overruled**. Objections go to weight not admissibility.

B. Sipos Declaration

Obj. Nos. 1 and 3: **Sustained**.

C. Signorotti Declaration

Obj. Nos. 4-8: **Sustained in part**, to the extent the statements objected to in paragraphs 4(b) through (f) are offered for the hearsay purpose of the truth of the declarant's characterization of the records, but not to the extent the text is reasonably interpreted as merely providing a brief identification of the document attached as the specified exhibit. The Court notes Plaintiffs do not object to any of the exhibits to the Signorotti Declaration, including Exhibits 3 through 7 which are described in the text of Signorotti Decl. ¶¶ 4(b)-(f).

Defendant's Evidentiary Objections

Defendant objected only to portions of the Plaintiffs' request for judicial notice. The Court has addressed those objections above.

8. 9:00 AM CASE NUMBER: C24-00237

CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC

*HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

Summary

On February 20, 2026, the Court granted Preliminary approval of the settlement memorialized in the class action Settlement Agreement entered by plaintiff Connor Jeremy Beare ("Plaintiff") and defendants, the Law Offices of Mitchell D. Bluhm and Associates, and Robert Bradley Ridgway ("Defendants"). The Parties now request final approval of settlement, which is **granted** as set forth herein. No appearance is required at the hearing on June 17, 2026.

Background

This is a class action lawsuit where the Plaintiff alleges that Defendants committed violations under various debt collection statutes and laws. Under the settlement terms, Defendants will pay a \$6,500 class fund to be distributed *pro rata* to Class Members. Each of the Thirteen Class Members besides Plaintiff will receive no less than \$500. Settlement checks that remain uncashed after 90 days from

the date they are mailed will be redistributed to Bay Area Legal Aid – Contra Costa County in Richmond, California, as a *Cy pres* doctrine recipient.

Defendants will pay Plaintiff \$2,000 in statutory damages and a service award not to exceed \$2,000, as authorized by the Court. Defendants have also agreed to pay reasonable attorneys' fees and costs to Class Counsel in an amount not to exceed \$45,000, and will not oppose this fee request.

As injunctive relief, Defendants agree not to engage in the business of debt collection in California without first obtaining a debt collection license from the California Department of Financial Protection and Innovation. They further agree not to send written collection communications to California consumers that fail to display a California debt collector license number.

Once the Settlement receives final approval and all conditions are met, Defendants will be released from the individual and class claims alleged in the lawsuit. The Parties contend the settlement satisfies all requirements for class certification under California Rule of Court 3.769 and is fair, adequate, and reasonable.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks \$45,000 in attorney's fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.)

The requested representative payment of \$2,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined "risk" by doing so. Considering all the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**, except for attorney's fees, which is scheduled for hearing on November 25, 2026 at 9:00 a.m. No appearance is required at the June 17, 2026 hearing.
2. Plaintiff's Counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel is to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

9. 9:00 AM CASE NUMBER: C24-03411
CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU
HEARING ON SUMMARY MOTION FILED BY DEFENDANTS
FILED BY: ELIAHU, AVI
TENTATIVE RULING:

Plaintiff Julie Romanowski brings this personal injury action seeking damages for injuries suffered when Defendant Aaron Eliahu collided with her while skiing at Northstar California Ski Resort. Defendants Aaron Eliahu, Avi Eliahu and Patricia Eliahu now move for summary judgment, arguing that Plaintiff's case is barred by the primary assumption of risk doctrine. For the reasons stated below, the motion is **granted**.

Facts

This action arises from a collision between skiers that occurred on December 24, 2022, on the Drifter

run at Northstar California Ski Resort in Truckee, Placer County, in which Defendant Aaron Eliahu collided with Plaintiff Julie Romanowski, causing her significant injuries. References below to “UMF” are to Defendants’ undisputed material facts, and to PMF” are to Plaintiff’s additional material facts, as set forth in the separate statements.

Drifter is a groomed, blue square, intermediate-level run, and both Drifter and the ungroomed terrain adjacent to it lie within Northstar’s boundaries. (UMF Nos. 1-3.) Drifter had been groomed that morning, no new snow had fallen that day, and conditions were clear and sunny with good visibility. (UMF Nos. 4-6.) Plaintiff, then 55 years old, was skiing with her husband; she had skied at Northstar for sixteen or seventeen years and testified she was comfortable on the resort’s most difficult runs. (UMF Nos. 7-10.) Defendant Aaron Eliahu, then 15, was skiing with his family. He had never taken a formal ski lesson, and categorized himself as an intermediate skier on a scale of beginner, intermediate, advanced, and expert. (UMF Nos. 11-15.)

Plaintiff was skiing down Drifter and, when she was approximately halfway down, decided to ski to the right edge of the run, looking downslope, and come to a stop. (PMF Nos. 1-2.) At that moment the run was empty of other skiers. (PMF No. 3.) She stopped off the edge of the run on ungroomed snow, with the groomed portion of Drifter to her left and ungroomed conditions to her right (PMF No. 4), planted her ski poles and positioned her skis to the left toward the groomed portion of the run so she could see skiers coming from above. (PMF No. 6.) She looked up and saw no one to her right or to her left. (UMF No. 22.) The spot where she stopped was not near any identifiable landmark, had no signage, and was not close to any trees. (UMF Nos. 19-21.) She was reaching for a tissue to blow her nose when the collision occurred. (UMF No. 18.)

Defendant was also skiing on ungroomed snow in the area where the collision occurred. (UMF No. 17; PMF No. 7.) The only ungroomed snow in and around the collision area that day was in the tree lines along the sides of Drifter (PMF No. 8), which is approximately 25 meters wide at its narrowest point. (PMF No. 9.) Defendant was traveling at approximately 25 miles per hour, making slalom turns roughly ten feet wide. (UMF No. 29; PMF No. 10.) He first saw Plaintiff when she was about 50 feet below him on the mountain, and he estimates that five to ten seconds passed between that moment and the collision. (UMF Nos. 27-28.) He continued making slalom turns as he closed the distance, and at approximately 20 feet realized he was not going to clear her and attempted to turn left to avoid the collision. (PMF Nos. 10-11.)

Plaintiff testified that, while she was stopped, she heard someone yell from above and to her right, “I can’t stop! Sorry,” and was then struck on her right side. (UMF Nos. 23-24.) She estimates that the time between first seeing Defendant and the collision was a “nanosecond,” insufficient for her to react. (UMF Nos. 25-26.) It is undisputed that Plaintiff made no erratic movements contributing to the collision, that Defendant testified she was unaware of his presence beforehand, that there was nothing she could have done to avoid him, and that no equipment malfunction or mechanical failure caused the collision. (UMF Nos. 30-32, 34.) It is further undisputed that Defendant was the uphill skier and Plaintiff the downhill skier with the right of way, and that Defendant was unable to overtake her without making contact. (UMF Nos. 35-37.)

Two facts in Defendant’s separate statement are disputed. Defendant states that he testified he was unable to stop and avoid Plaintiff (UMF No. 33), and that the speed at which he was traveling and the distance remaining between them were the reasons he was unable to avoid the collision. (UMF No.

38.) Plaintiff does not dispute that this testimony was given, but disputes both statements as incomplete, on the ground that in the same testimony Defendant also stated that he was unable to avoid the collision because he lacked “sufficient control” and was “not in control” (PMF No. 12), a characterization Plaintiff contends Defendant's statement of UMF Nos. 33 and 38 omits.

The collision shattered Plaintiff's pelvis in fifteen locations, caused additional injuries, and rendered her unconscious for several minutes. (PMF No. 13.) She was life-flighted to Renown Regional Medical Center in Reno as a Trauma Red patient with life-threatening injuries. (PMF No. 14.) Her pelvis fracture was of a type typically seen in T-bone motor vehicle collisions, and her treating surgeon testified that injuries of that magnitude, absent a vehicle collision, reflect substantial force, such that Defendant “would have to be going very quickly.” (PMF Nos. 15-16.) When ski patrol arrived at the scene, Plaintiff was found on the groomed portion of Drifter. (UMF No. 42) Neither party is aware of any identifiable witness to the collision other than themselves, and Plaintiff does not contend that Defendant collided with her intentionally. (UMF No. 43.)

The record establishes the content of the skier responsibility codes applicable at Northstar. Northstar maintains a Skier Responsibility Code (PMF No. 19) that promulgates ten tenets of safe skiing (PMF No. 20) and is posted on Northstar's “Safety on the Mountain” webpage and at locations throughout the resort (PMF No. 21) to serve as a foundation for safe skiing. (PMF No. 22.) That code is identical to the code adopted by the National Ski Patrol (PMF No. 23), whose website describes the code as the foundation of safe skiing and snowboarding in the United States (PMF No. 24) and states that its rules are not mere suggestions but the standard for safe behavior on the slopes that helps reduce collisions. (PMF No. 25.) The lead Northstar patroller who responded to this collision agreed that the code is the standard for safe behavior on the slopes. (PMF No. 26.) The first two tenets of both codes, relied upon by Plaintiff here, are: (1) Always stay in control. You must be able to stop or avoid people or objects. (2) People ahead or downhill of you have the right-of-way. You must avoid them. (PMF No. 27.) Northstar's patrollers testified that each is a foundation for safe skiing. (PMF No. 28.) Substantially similar duties are codified in Placer County Code sections 9.28.050 and 9.28.060 (PMF Nos. 29-30), to which Northstar's website specifically links. (PMF No. 31.)

Although Defendant was not aware of either the Northstar Code or the Placer County Code prior accident in this case (UMF No. 39), he testified that he agrees these are responsibilities held by skiers (PMF No. 32), that he did not grant Plaintiff the right of way (PMF No. 33), and that he overtook her while he was the uphill skier. (PMF No. 34.)

The December 17, 2024 complaint contains two causes of action, both styled as general negligence. The first is against Aaron Eliahu arising from the collision, and the second is against Aaron's parents, Avi Eliahu and Patricia Eliahu, for negligent supervision.

On March 26, 2025, Defendants filed this motion for summary judgment. They claim the doctrine of primary assumption of risk excused them from liability for negligence and there were no facts establishing recklessness. Plaintiff opposes the motion, claiming primary assumption of risk does not apply because Aaron Eliahu was reckless in his skiing.

Discussion

Summary Judgment Standard

A trial court will grant summary judgment where there is no triable issue of material fact and the moving party is entitled to judgment as a matter of law. A defendant moving for summary judgment must prove the action has no merit. He does this by showing one or more elements of plaintiff's cause of action cannot be established or that he has a complete defense to the cause of action. At this point, plaintiff then bears the burden of showing a triable issue of material fact exists as to that cause of action or defense. (Code Civ. Proc., § 437c, subds. (c), (o)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843, 849–850.)

In determining whether there is a triable issue of material fact, the court considers all the evidence set forth by the parties except that to which objections have been made and properly sustained. (Code Civ. Proc., § 437c, subd. (c); *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 334.) The court accepts as true the facts supported by plaintiff's evidence and the reasonable inferences therefrom (*Sada v. Robert F. Kennedy Medical Center* (1997) 56 Cal.App.4th 138, 148), resolving evidentiary doubts or ambiguities in plaintiff's favor. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.)

Evidentiary Matters

Judicial notice

Defendants request judicial notice of Plaintiff's complaint filed December 17, 2024, pursuant to Evidence Code section 452, subdivision (d). The request is **granted**.

Plaintiff requests judicial notice of Article 9.28 of the Code of Ordinances for the County of Placer pursuant to Evidence Code section 452, subdivisions (b) and (h). The request is **granted**. The Court takes judicial notice of the existence and text of the ordinance. The Court does not take judicial notice of any particular interpretation of the ordinance.

Evidentiary objections

Defendants object to portions of the depositions of Wiebe (Whittington Dec., Exhibit D, 58:17-59:22, 60:10-24, 62:2-15, 62:25-63:8) and Abbott (Whittington Dec., Exhibit E, 29:8-20, 30:2-23, 30:25-31:12, 37:22-39:4, 39:16-25, 40:21-41:1) on grounds of improper opinion testimony, lack of personal knowledge, and relevance. The objections are **sustained** to the extent the challenged testimony purports to offer legal conclusions about the purpose or effect of the skier responsibility codes, or to characterize those codes as establishing a standard of care.

Primary Assumption of Risk

The primary assumption of risk doctrine is an exception to the general rule that a person owes a duty to exercise ordinary care to avoid injuring others. (Civ. Code, § 1714, subd. (a); *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1197 (*Lackner*).) Under the doctrine, coparticipants in sporting activities generally do not have a duty to protect each other from the risks inherent in the sport, or to eliminate risk from the sport, but owe a duty of care to avoid increasing the risk of harm beyond that

which is inherent in the sport. (*Id.* at p. 1198.) The duty owed by the participant is to avoid “intentionally injur[ing] another [participant] or engag[ing] in conduct that is so reckless as to be totally outside the range of the ordinary activity involved in the sport.” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 320 (*Knight*)). Whether primary assumption of risk applies “turns on whether, in light of the nature of the sporting activity in which defendant and plaintiff were engaged, defendant’s conduct breached a legal duty of care to plaintiff.” (*Id.* at p. 315.) The test is objective and depends on the nature of the sport and the defendant’s role in or relationship to the sport. (*Cheong v. Antablin* (1997) 16 Cal.4th 1063, 1068 (*Cheong*); *Lackner, supra*, 135 Cal.App.4th at p. 1198.) When applicable, the doctrine operates as a complete bar to recovery, and is based on the policy of avoiding chilling vigorous participation in the sport, or fundamentally altering the nature of the sport. (*Knight, supra*, 3 Cal.4th at pp. 314-315; *Lackner, supra*, 135 Cal.App.4th at p. 1198.)

While not all conduct is excused under the doctrine, a coparticipant ordinarily bears no liability for an injury resulting from conduct that is merely careless or negligent. (*Lackner, supra*, 135 Cal.App.4th at pp. 1198, 1199; *Ford v. Gouin* (1992) 3 Cal.4th 339, 342.) When the facts are not disputed, application of the doctrine of primary assumption of risk is a legal question to be decided by the court. (*Childs v. County of Santa Barbara* (2004) 115 Cal.App.4th 64, 69.)

A defendant seeking summary judgment based on the doctrine must establish that defendant did not owe a legal duty to prevent the harm of which plaintiff complains. (*Capri v. L.A. Fitness International, LLC* (2006) 136 Cal.App.4th 1078, 1087.) Accordingly, Eliahu is liable to Romanowski only if he intentionally injured her or engaged in reckless conduct outside the range of ordinary activity in skiing, such that prohibiting the conduct would not deter vigorous participation or alter the nature of the sport. (*Lackner, supra*, 135 Cal.App.4th at p. 1199.)

A. Inherent Risks of Skiing

“The risks inherent in snow skiing have been well catalogued and recognized by the courts. Those risks include injuries from variations in terrain, surface or subsurface snow or ice conditions, moguls, bare spots, rocks, trees, and other forms of natural growth or debris. They also include *collisions with other skiers*, ski lift towers, and other properly marked or plainly visible objects and equipment.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1202, emphasis added.)

Recognizing the nature of skiing lends the sport to being an activity to which primary assumption of risk applies, Romanowski does not dispute that she and Eliahu were coparticipants in the sport, or that collisions between skiers are among its inherent risks. She contends instead that primary assumption of risk does not apply because disputed issues of fact suggest Eliahu’s conduct was reckless, and that his conduct thereby increased the risks of skiing beyond those inherent to the sport. She further contends that the Northstar Skier Responsibility Code and the Placer County Code inform the range of activity ordinarily involved in skiing, and that Eliahu’s violation of those provisions supports her recklessness argument. The Court considers each argument below.

B. Reckless Behavior

Plaintiff claims she submitted sufficient facts to create a triable issue on whether Eliahu’s skiing was reckless and thus outside the shield of primary assumption of risk. Defendants argue there is no such triable issue, and the Court agrees.

“‘Recklessness’ refers to a subjective state of culpability greater than simple negligence, which has been described as a ‘deliberate disregard’ of the ‘high degree of probability’ that an injury will occur. [Citations.] Recklessness, unlike negligence, involves more than ‘inadvertence, incompetence, unskillfulness, or a failure to take precautions’ but rather rises to the level of a ‘conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.’ (Rest.2d Torts, § 500, com. (g), p. 590.)” (*Delaney v. Baker* (1999) 20 Cal.4th 23, 31-32, fn. omitted.)

To establish Eliahu's conduct was reckless and not shielded by primary assumption of risk, plaintiff must show the conduct was "so reckless as to be totally outside the range of the ordinary activity involved in the sport." (*Knight, supra*, 3 Cal.4th at p. 320, fn. omitted.) “[C]onduct is totally outside the range of ordinary activity involved in the sport (and thus any risks resulting from that conduct are not inherent to the sport) if the prohibition of that conduct would neither deter vigorous participation in the sport nor otherwise fundamentally alter the nature of the sport.” [Citations.]” (*Distefano v. Forester* (2001) 85 Cal.App.4th 1249, 1261; *Freeman v. Hale* (1994) 30 Cal.App.4th 1388, 1394-1395.)

Thus, in *Towns v. Davidson* (2007) 147 Cal.App.4th 461, the court addressed whether skiing too fast or out of control raises a triable issue of recklessness. There, the defendant was skiing down a slope at 25 to 30 miles per hour when he turned to his right without looking, did not see the plaintiff skiing down the same slope until the last second, and collided with her, causing serious injuries. The court held that this conduct was not reckless, explaining that to conclude otherwise would call into question vigorous skiing and fundamentally alter the nature of the sport. (*Id.* at pp. 471, 473.)

Romanowski testified that she did not see Eliahu before the collision. While she was stopped, she heard him yell, “I can't stop! Sorry,” from above and to her right, and was struck on her right side within what she described as a “nanosecond” of first becoming aware of him. (UMF Nos. 23-26.) Eliahu testified that he first saw Romanowski when she was approximately 50 feet below him on the mountain, that five to ten seconds passed before the collision, and that he was traveling at approximately 25 miles per hour making slalom turns approximately ten feet wide. (UMF Nos. 27-29.) He continued making slalom turns as he closed the distance, and at approximately 20 feet realized he was not going to clear her and attempted to turn left to avoid the collision. (PMF Nos. 10-11.) He testified that he was unable to stop or avoid the collision because he lacked sufficient control. (PMF No. 12.) Neither party identifies any percipient witness to the collision itself; the ski patrollers who responded to the scene arrived afterward and did not witness it. (UMF Nos. 40-42.)

The material facts concerning Eliahu's conduct are not in dispute. Eliahu was skiing on ungroomed snow in the vicinity of Drifter, traveling at approximately 25 miles per hour and making slalom turns approximately ten feet wide. (UMF Nos. 17, 29; PMF Nos. 7, 10.) He saw Romanowski from 50 feet away, continued his slalom turns as he closed the distance, and at 20 feet attempted to turn left to avoid her but was unable to stop or avoid the collision. (UMF Nos. 27-28; PMF Nos. 11-12.) Romanowski does not dispute that Eliahu gave this testimony; she contends only that his statement of these facts should also reflect his testimony that he lacked sufficient control. The Court need not resolve whether this renders UMF Nos. 33 and 38 disputed, because an admission of loss of control does not itself support a finding of recklessness.

These facts do not establish conduct totally outside the range of ordinary activity involved in the sport of skiing. Eliahu was skiing at speed, making turns on terrain adjacent to Drifter. He saw Romanowski,

tried to get around her, and could not. There is no evidence he consciously chose to ski in a manner that introduced risks beyond those inherent in the sport. (*Cheong, supra*, 16 Cal.4th at pp. 1069-1072.) Romanowski's reliance on *Lackner* and *Mammoth Mountain Ski Area v. Graham* (2006) 135 Cal.App.4th 1367 (Graham) does not change this conclusion.

Lackner recognized that “[i]nadvertent collisions with coparticipants who carelessly cross paths” are an inherent risk of skiing. (*Lackner, supra*, 135 Cal.App.4th at p. 1199.) However, *Lackner* held there was a triable issue of fact as to whether the collision was inadvertent and unavoidable. (*Id.* at p. 1201.) The court stated that because he was an expert snowboarder, he had the skill to avoid people standing in the area, and concluded that he was not paying attention to his surroundings. (*Ibid.*) The court found a triable issue as to whether the defendant had been reckless because of the cumulative evidence that he was speeding, he was on a flat rest area, he was not looking where he was going, and he was unfamiliar with the area. (*Ibid.*)

None of that is true here. Eliahu did not collide with someone in a designated rest area. He was not racing anyone. And he was not looking away from the slope. He saw Romanowski from 50 feet away, continued skiing as he closed the distance, and at 20 feet realized he was closing on her and tried to turn left to avoid her. Looking toward the person you are about to strike is very different from looking back at teammates.

In *Graham*, the defendant was engaged in a snowball fight with his brother, “looking at [his brother] and preparing to throw a snowball,” when he struck a ski instructor standing still at the edge of the run. The court held a jury could find the collision “neither inadvertent nor unavoidable” because the defendant “was not watching where he was going.” (*Graham, supra*, 135 Cal.App.4th at pp. 1369-1370, 1373.) That is, neither defendant was paying attention to skiing at the moment of collision. One was racing teammates, the other was throwing snowballs. They happened to be on skis or a snowboard while doing it.

Romanowski argues that defendant made a “conscious decision[] regarding [his] speed and line of travel,” and that this places Eliahu's conduct in the same category as the defendants in *Lackner* and *Graham*. (Opp. 17:25-26.) That is true in every case that a skier chooses a speed and a line, including the ones where primary assumption of risk has barred recovery. The defendants in *Lackner* and *Graham* were not paying attention to where they were going, a differentiating feature of those cases. Eliahu's attention, by contrast, was on Romanowski the entire time. He saw her from 50 feet away, continued skiing as he closed the distance, and at 20 feet tried to turn away but could not stop in time. He was not looking back at teammates or throwing snowballs. At worst, this is the kind of accidentally careless behavior arising from a participant's normal energetic conduct that is not actionable. (*Knight, supra*, 3 Cal.4th at p. 318.)

Romanowski points to the greater distance and additional time before the collision, as compared to *Lackner*, as making this case “more egregious.” (Opp. 16:25-27.) The Court disagrees. Romanowski's list of things Eliahu could have done instead, widen his turn, stop, or intentionally fall, does not show that failing to do any of them was a choice. Looking in a particular direction requires no skill and is available to any skier, which is why that can fairly be called a choice. Executing a wider turn, an emergency stop, or a controlled fall at 25 miles per hour depend on the skier's skill and the time he had. That Eliahu, an intermediate skier (UMF Nos. 11-15), did not manage any of these in the few seconds before the crash is evidence of misjudgment or a limit of his ability, not that he consciously

decided against attempting them. The “intentional fall” option above illustrates the point. If a skier's failure to deliberately fall rather than risk a collision were itself evidence of recklessness, the standard would require every skier who perceives a collision to choose self-inflicted injury as the safer course. That would deter vigorous skiing far more than the conduct it targets.

Nor does Romanowski's characterization of herself as a stationary bystander change the analysis. *Graham* held that “participation in snowboarding or skiing does not carry with it the inherent risk of being struck by another snowboarder or skier engaged in a snowball fight.” (*Graham, supra*, 135 Cal.App.4th at pp. 1373-1374.) It was the snowball fight that fell outside the inherent risk, not the fact that the instructor happened to be standing still. A stopped skier is not automatically outside the inherent risk of collision. *Lackner's* own list of inherent risks includes collisions with “properly marked or plainly visible objects,” which are by and large stationary. (*Lackner, supra*, 135 Cal.App.4th at p. 1202.)

A finding of recklessness on these facts would call into question vigorous skiing and fundamentally alter the sport. He was skiing fast and making turns on a run, saw another skier, and could not stop in time. Calling that reckless would leave little room for skiing at all.

C. The Skier Responsibility Codes

Romanowski contends that the Northstar Skier Responsibility Code and the Placer County Code present genuine issues of material fact as to what constitutes the range of ordinary activity involved in skiing, and that Eliahu's violation of those codes supports her recklessness argument.

Romanowski makes three arguments about the codes. She argues that Eliahu violated them by failing to stay in control and failing to yield the right of way, and that his own deposition testimony confirms it. She argues that prohibiting his conduct would not chill vigorous skiing because the codes already prohibit it. And she argues that even if the codes do not create independent liability, they inform what ordinary skiing looks like and add support to her recklessness argument.

Defendants point out that the Placer County Code itself states that skiers assume the inherent risks of skiing, which the code defines to include collision with other skiers and a skier's failure to ski within his own ability. (Placer County Code, § 9.28.020.) Section 9.28.030 extends the assumption of risk to anyone within the ski area boundaries, including persons there for the purpose of watching skiing activity.

Romanowski does not argue that the codes modify the common law rules of primary assumption of risk or impose an independent basis for tort liability, as was argued and rejected in *Cheong, supra*. Nor does she argue that a code violation automatically means recklessness.

Cheong considered the same Placer County ordinance at issue here in the context of a skier-on-skier collision and held that it did not alter the primary assumption of risk analysis. (*Cheong, supra*, 16 Cal.4th at pp. 1069-1072.) The Court is not persuaded that Eliahu's violation of the Placer County Skier Responsibility Code shows that his conduct was totally outside the range of ordinary activity in skiing.

The code lists several duties of skiers, one of which is to ski in a safe and reasonable manner, under sufficient control to be able to stop or avoid other skiers or objects. (Placer County Code, § 9.28.050,

subd. A.) The California Supreme Court has held that those duties do not govern tort liability between skiers. (*Cheong, supra*, 16 Cal.4th at p. 1069.) The code itself provides that skiers assume and accept the inherent risks of skiing, which it defines to include collision with other skiers and a skier's failure to ski within his own ability. (Placer County Code, §§ 9.28.020, 9.28.030.) The defendant in *Cheong* also violated the Placer Code by skiing faster than was safe and losing control, yet the Court held the code created no liability between the skiers. If the Placer County Code does not alter the primary assumption of risk analysis, the Northstar Code, a private resort policy, cannot either. (See also, *Avila, supra*, 38 Cal.4th at 165 [violation of a rule of the game does not itself give rise to tort liability between coparticipants].)

Campbell v. Derylo (1999) 75 Cal.App.4th 823, cited as support for using code violations to show an inherent risk has been increased, does not persuade the Court that this motion should be denied. The *Campbell* court limited its holding to the defendant's failure to use a snowboard retention strap, a specific equipment requirement with no parallel here, and treated the remaining alleged misconduct as ordinary negligence barred by primary assumption of risk. *Campbell* does not support that code violations generally transform otherwise ordinary skiing into recklessness.

Disposition

Based on the foregoing, summary judgment is **granted**.

As to the first cause of action, the undisputed facts establish that Romanowski's injuries arose from risks inherent in recreational skiing and that Eliahu's conduct was not so reckless as to fall outside the range of ordinary activity involved in the sport. Primary assumption of risk bars therefore bars her claim against Aaron Eliahu.

As to the second cause of action for negligent supervision against Avi and Patricia Eliahu, the moving papers do not address it separately, and neither party argues it survives independently of the first. A negligent supervision claim requires an underlying tortious act by the person supervised. Because Aaron owed no duty to Romanowski, there is no tort for his parents to have failed to prevent. The second cause of action is therefore disposed of on the same grounds.

10. 9:00 AM CASE NUMBER: C24-03522
CASE NAME: KAMURE KIZART VS. PUBLIC HEALTH FOUNDATION ENTERPRISES, INC.
***HEARING ON MOTION IN RE: COURT APPROVAL OF PAGA SETTLEMENT**
FILED BY: KIZART, KAMURE

TENTATIVE RULING:

Summary

Plaintiff Kamure Kizart's Motion for Approval of the PAGA Settlement Agreement is **granted** as set forth herein. No appearance is required at the June 17, 2026 hearing.

Background

Plaintiff Kamure Kizart ("Plaintiff") and Defendant Public Health Foundation Enterprises, Inc. ("Defendant") have reached a settlement under the Labor Code Private Attorneys General Act of 2004 (PAGA). The total settlement amount is \$1,000,000. The settlement covers approximately 2,600

Aggrieved Employees, defined as all non-exempt, hourly-paid employees employed by Defendant in California from October 21, 2023 through November 19, 2025.

Plaintiff worked as a Shelter Specialist at Defendant's Brookside Shelter location in Richmond, California from approximately July 2023 to April 2024. The lawsuit, filed on December 26, 2024, alleges violations of multiple California Labor Code provisions, including unpaid overtime and minimum wages, failure to provide meal and rest periods, non-compliant wage statements, failure to maintain accurate payroll records, failure to pay vested vacation wages, untimely payment of wages during employment and upon termination, and failure to reimburse business expenses. The settlement was negotiated through mediation with Hon. Howard R. Broadman (Ret.) on November 19, 2025, following production of Defendant's labor policies and employee time and payroll records.

The settlement creates a PAGA Penalties Fund of approximately \$631,667. Of this amount, sixty-five percent (approximately \$410,583.55) will be paid to the Labor and Workforce Development Agency (LWDA), and thirty-five percent (approximately \$221,083.45) will be distributed to Aggrieved Employees. The settlement is non-reversionary, meaning all funds will be distributed.

In addition to the PAGA Penalties Fund, the settlement includes a \$10,000 Service Award to Plaintiff for her service on behalf of the State and Aggrieved Employees, as well as a general release of claims arising from her employment. Plaintiff's counsel requests \$333,333 in attorneys' fees and \$10,000 in litigation costs. Settlement administration costs of approximately \$15,000 will be paid to ILYM Group, Inc.

Payments to Aggrieved Employees will be calculated on a pro-rata basis using the number of pay periods worked by each employee during the settlement period. Employees who worked longer durations will receive proportionally larger payments than those who worked for shorter periods. The Parties contend that the settlement represents a fair compromise of Plaintiff's claims in view of the risks of continued litigation and contested issues of law and fact and accomplishes PAGA's objectives by imposing sufficient civil penalties to punish and deter future violations while ensuring the penalties are not unjust or oppressive.

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn.*

Inter-Ins. Bureau v. Superior Court (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Court finds that this settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The Motion is **granted**. No appearance is required at the hearing on June 17, 2026.
2. Plaintiff’s Counsel is directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
3. Plaintiffs’ counsel is to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without hearing on the compliance statement.

11. 9:00 AM CASE NUMBER: C25-00609

CASE NAME: VICKI RUDD VS. THERESA CALLEJAS

*HEARING ON MOTION IN RE: VACATE DISMISSAL ENTERED, ENFORCE SETTLEMENT AGREEMENT, AND SANCTIONS FOR COUNSEL

FILED BY: CALLEJAS, THERESA

TENTATIVE RULING:

Defendants Theresa Callejas, Rosalinda Callejas, and Michelle Karakas ("Defendants") bring the instant motion to vacate dismissal, enforce settlement, and sanction counsel pursuant to Code of Civil Procedure ("CCP") section 128.7 (the "Motion").

Defendants argue that this case (C25-00609) is barred by a release executed in a settlement agreement for Contra Costa Superior Court case number C18-01501. Defendants ask the Court to vacate the dismissal in case number C18-01501, reinstate that case, and then enforce the settlement agreement and award Defendants fees and costs in connection with the defense of the instant action. Defendants also ask for the Court to award them sanctions pursuant to CCP section 128.7.

For the reasons discussed below, Defendants' Motion is **DENIED**.

Request for Judicial Notice:

Defendants request the Court to take judicial notice of: **(1)** all pleadings filed in *Vicki Rudd v. Theresa Callejas as an Individual and as Trustee of the Theresa H. Callejas Revocable Trust, et al.*, Contra Costa County Superior Court case no. C18-01501 (the "2018 Action"); **(2)** the Settlement Agreement and Release of All Claims signed by Plaintiff Vicki Rudd and Defendant Theresa Callejas on 2/19/2019; **(3)** all pleadings filed in *Vicki Rudd v. Theresa Callejas as an Individual and as Trustee of the Theresa H. Callejas Revocable Trust, et al.*, Contra Costa County Superior Court case no. C25-00609; and **(4)** all pleadings filed in *Michele Karakas v. Vicki Rudd, et al.*, Contra Costa County Superior Court, case no. MS25-0791.

Defendants request judicial notice of the above-referenced documents via Evidence Code section 452, subdivisions (d) and (h). (Request for Judicial Notice, p. 1.) The Court GRANTS Defendants' request for judicial notice as to request numbers (1), (3), and (4). However, the Court DENIES the request for judicial notice as to request number (2), the settlement agreement from the 2018 Action. The settlement agreement is not a record of any court as it was never filed in the 2018 Action, so the Court cannot grant the request for judicial notice as to the settlement agreement under subdivision (d) of Evidence Code section 452. Further, the Court cannot grant the request for judicial notice as to the settlement agreement under subdivision (h) because a non-public settlement agreement between two private parties is not "capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452, subd. (h).)

Background: Facts Alleged in Complaint

As per the allegations in the Complaint, Plaintiff is a tenant living on a property located in Pleasant Hill (the "Property"). (Complaint, ¶ 1.) Defendants owned, controlled, or managed the Property while Plaintiff resided there and are her Landlords. (*Id.* at ¶¶ 2, 6.) Plaintiff entered into a rental agreement with Defendants around July 15, 2008, regarding the Property. (*Id.* at ¶ 7.) Rent was to be

\$2,200 per month but was increased to \$2,500 per month. (*Ibid.*) Plaintiff asserts that substantial habitability defects existed with the Property that rendered the Property unfit for human occupancy. (*Id.* at ¶ 9.) These defects include but are not limited to: a non-working heater; rodent infestation; defective plumbing; defective electrical wiring; mold and mildew; illegal structure connected to the roof overhang, and severe structural disrepair. (*Id.* at ¶ 10.) At the time the lease was executed, Defendants were aware of these conditions and others that would come into existence shortly after the beginning of the tenancy. (*Id.* at ¶ 11.) Defendants concealed these facts from Plaintiff at the time of entering into the rental agreement. (*Ibid.*) Plaintiff moved onto the Property on August 1, 2008. (*Id.* at ¶ 12.)

Shortly after moving in, Plaintiff discovered mold, bathroom defects, appliance malfunctions, rodent infestation, non-functional bathroom window, mold in cabinets, fire hazards (an outlet in a bedroom caught fire); structural hazards (ceiling collapsed onto Plaintiff's head), multiple water leaks from plumbing fixtures, and more. (Complaint, ¶¶ 12-13.) Plaintiff filed a lawsuit in 2018 to address these and other issues. (*Id.* at ¶ 14.) Also in 2018, the heater in the living room was red tagged for leaking carbon monoxide onto the Property. (*Id.* at ¶ 15.) Since the heater was replaced, it has not functioned properly. (*Ibid.*) In 2019, Plaintiff and Defendants settled the 2018 Lawsuit and Defendants agreed to remediate the mold, rodent infestations, and structural issues. (*Id.* at ¶ 16.) Despite this, Defendants have failed to do so which has led to the issues continuing to negatively affect Plaintiff. (*Ibid.*) These include electrical failures in 2023 and rodent infestations in 2024. (*Id.* at ¶¶ 17-18.) Plaintiff notified Defendants but rather than fix the issues they retaliated against Plaintiff for reporting the issues. (*Id.* at ¶¶ 18-19.)

In June 2024, Defendants served a 60-day notice on Plaintiff. (Complaint, ¶ 20.) In September 2024, Defendants filed an eviction action against Plaintiff. (*Id.* at ¶ 22.) Defendants dismissed the unlawful detainer action on the day of trial. (*Id.* at ¶ 22.) Plaintiff then sent Defendants lists of numerous safety hazards in December 2024 and February 2025. (*Id.* at ¶ 23.) In January 2025, Defendants notified Plaintiff that the rent was increasing from \$2,500 per month to \$4,000 per month. (*Id.* at ¶ 24.) Plaintiff also complains of Defendants not following 24-hour notice of entry requirements and of engaging in a pattern of harassment, intimidation and retaliation. (*Id.* at ¶¶ 28, 33.)

The Complaint in this matter was filed on March 4, 2025, and asserts claims for: (1) breach of the implied warranty of habitability (Civil Code sections 1941 et seq.); (2) breach of quiet enjoyment (Civil Code section 1927); (3) contractual breach of the implied warranty of habitability (Civil Code section 1941); (4) breach of contract; (5) retaliation; (6) violation of Civil Code section 789.3; (7) unfair business practices (Bus. & Prof. Code, § 17200 et seq.); and (8) negligence.

There was an earlier case between Plaintiff and defendant Theresa Callejas, regarding the same Property and similar issues (the 2018 Action), that was dismissed with prejudice on April 29, 2019.

Discussion

Defendants argue that the Court should vacate the dismissal of the 2018 Action and enforce the 2019 settlement agreement pursuant to CCP section 664.6. (MPA ISO Motion, pp. 1-4.) Defendants argue that a declaration of Plaintiff from case number MS25-0791, provides all the facts necessary to grant Defendants' instant Motion. (*Id.* at pp. 4-10.) Defendants assert that an indemnity provision from the

2019 settlement agreement supports their request for attorney fees. (*Id.* at pp. 10-11.) Finally, Defendants argue that they are entitled to sanctions pursuant to CCP section 128.7, and request that the Court set a hearing to determine the amount of sanctions. (*Id.* at p. 11.)

Plaintiff argues that the Court should deny the Motion for failing to conform to California Rule of Court, rule 3.1112(a). (Opposition, pp. 11-12.) Plaintiff points out that the release from the 2019 settlement agreement does not and cannot release Defendants from liability for misconduct that occurred subsequent to the release. (*Id.* at pp. 12-13.) Plaintiff also asserts that there is no proper legal mechanism to vacate the dismissal from the 2018 Action because it is not void and there is no evidence of extrinsic fraud. (*Id.* at pp. 13-15.) Plaintiff addresses the CCP § 128.7 claim by arguing that Defendant did not comply with the statutory requirements and thus the Court should deny those sanctions. (*Id.* at pp. 15-16.) Additionally, Plaintiff argues that none of their claims are time-barred, the release does not require Plaintiff to indemnify Defendants for this matter, and that Defendants' Motion itself violates CCP § 128.7. (*Id.* at pp. 16-21.) Finally, Plaintiff argues that there was no CCP § 664.6 motion filed in the 2018 Action and the agreement does not show that it was filed with the court or signed by the judge. (*Id.* at pp. 19-20.)

On reply, Defendants argue that they complied with CRC rule 3.1112(a) and that the Motion is not a CCP § 128.7 motion, although it does seek remedies available under CCP § 128.7. (Reply, pp. 3-4.) They also assert that Plaintiff's admissions show that the settlement agreement applies and should be enforced to prevent Defendants from incurring additional legal fees in this frivolous action. (*Id.* at pp. 5-6.) Defendants point out that Plaintiff cited an inapplicable version of CCP § 667.6, as it was amended and the new version became operative in 2025 such that the newer statute is not applicable to the Court's retention of jurisdiction in relation to the 2018 Action. (*Id.* at pp. 6-7.) Finally, Defendants request that a hearing be set on the issue of § 128.7 sanctions. (*Id.* at pp. 2-3.)

CCP § 664.6 Request to Vacate Dismissal and Enforce Settlement Agreement

Defendants ask this Court to vacate the dismissal of the 2018 Action and enforce the 2019 settlement agreement pursuant to CCP section 664.6. (MPA ISO Motion, pp. 1-4.) The requirements for a court to retain jurisdiction over a matter subsequent to dismissal are laid out in Defendants' MPA ISO the Motion. "A request for the trial court to retain jurisdiction under CCP § 664.6 must conform to the same three requirements which the Legislature and the courts have deemed necessary for § 664.6 enforcement of the settlement itself: the request must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety. . ." (MPA ISO Motion, p. 5:17-21, citing *Mesa RHF Partners. L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917.) Here, in reviewing the 2018 Action's docket, as per Defendant's request for judicial notice, the Court has determined that there was never a request made in the 2018 Action for the court to retain jurisdiction. There was a case management conference statement filed on December 14, 2018, which stated that there was a mediation in that case scheduled for February 19, 2019. Then, there was a notice of conditional settlement filed on March 6, 2019, that stated that a request for dismissal would be filed no later than May 1, 2019. Nothing was attached to the notice of conditional settlement, it was just a single CM-200 form that was filed. Then, on April 29, 2019, a request for dismissal was filed that dismissed the case with prejudice, and again, there was nothing attached to the document that was filed—it was just a standalone CIV-110 form.

Despite the parties possibly agreeing between themselves in the settlement agreement that the Court would retain jurisdiction, there was never a request made during the pendency of the 2018 Action for the Court to retain jurisdiction. At the time the parties here entered into their settlement agreement and dismissed the 2018 Action, CCP section 664.6 authorized the Court to retain jurisdiction to enforce a settlement, “if requested by the parties.” “‘Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement.’ [Citation.]” (*Mesa, supra*, 33 Cal.App.5th at p. 917.)

In *Mesa*, the Court of Appeal rejected the argument that the parties’ signed settlement agreement was sufficient to retain the trial court’s jurisdiction because the agreement was never presented to the court, and the court was never asked to retain jurisdiction, before the case was dismissed. (*Mesa, supra*, 33 Cal.App.5th at p. 918.) The fact the parties had a signed agreement for the court to retain jurisdiction alone was not sufficient because “subject matter jurisdiction ‘is not subject to forfeiture or waiver’ and cannot be conferred by ‘estoppel, consent, . . . or agreement.’” (*Id.* at p. 918, fn. 3.)

Here, Plaintiff dismissed the action with prejudice on April 29, 2019, and there is nothing in the record to show the parties requested the Court to retain jurisdiction, or that the Court otherwise retained jurisdiction in any way. This lack of jurisdiction does not render any settlement agreement the parties entered into unenforceable. Rather, it simply means it may not be enforced through the summary procedures authorized by CCP § 664.6.

Defendants’ Motion to vacate the dismissal in the 2018 Action and enforce the settlement agreement is thus DENIED WITHOUT PREJUDICE to Defendants invoking some other procedure to enforce the settlement agreement.

128.7 Sanctions

Defendants ask the Court to set a hearing on the issue of CCP § 128.7 sanctions as to Plaintiff and her pursuit of the instant claims, due to them being barred either by the release from the settlement of the 2018 Action or the statute of limitations. (Reply, pp. 7-11.) However, according to CCP § 128.7, subdivision (c)(1), “A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b).” Here, Defendants’ motion to sanction counsel pursuant to CCP § 128.7, is included as a portion of a larger, “MOTION TO VACATE DISMISSAL ENTERED, ENFORCE SETTLEMENT AGREEMENT, AND SANCTION COUNSEL PURSUANT TO CCP § 128.7.” (MPA ISO Motion, p. 1.)

Further, regarding CCP § 128.7 sanctions, the “[n]otice of motion . . . shall not be filed with or presented to the court unless, within 21 days **after service of the motion**, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.” Here, the Declaration of Karyne T. Ghantous ISO the Motion, does not reflect that Defendants served a copy of the Motion on Plaintiff, but rather a 2-page letter that was to “serve as [the] 21-Day Notice of Safe Harbor . . .” (Ghantous Decl. ISO Motion, ¶ 3, Exh. 1.) This letter is not sufficient to trigger the 21-day safe harbor period, as the statute makes clear, a notice of motion pursuant to CCP § 128.7 shall not be filed any sooner than 21 days after service of the motion.

Thus, the Court cannot entertain the portion of the Motion that is seeking CCP § 128.7 remedies.

Defendants' motion to sanction Plaintiff's counsel via CCP § 128.7 is **DENIED**.

Ruling

Based on the above analysis, Defendants' Motion to vacate the dismissal in the 2018 Action and enforce the settlement agreement is **DENIED WITHOUT PREJUDICE** to Defendants invoking some other procedure to enforce the settlement agreement. Defendants' motion to sanction Plaintiff's counsel via CCP § 128.7 is **DENIED**.

12. 9:00 AM CASE NUMBER: C25-01588

CASE NAME: MUKESH ADVANI VS. NIARE FEASTER

HEARING IN RE: EX PARTE APPLICATION FOR LEAVE TO AMEND THE COMPLAINT TO SUBSTITUTE TRUE NAME FOR DOE DEFENDANT 1 AND 2

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Mukesh Advani, individually, as successor in interest to Mohini Advani, and as Personal Representative and Special Administrator to the Estate of Mohini Advani (collectively, "Plaintiff") filed an *ex parte* application on February 9, 2026 for leave to amend the complaint to substitute true name for Doe Defendant 1 (Healthflex Hospice) and for Doe Defendant 2 (Healthflex Home Health Services). The hearing on the application was set for hearing on June 17, 2026. No timely opposition was filed with the Court.

The application for leave to amend the complaint is **granted**. Plaintiff shall file an amended complaint no later than 10 days from the date of this order. No appearance is required at the hearing on June 17, 2026.

13. 9:00 AM CASE NUMBER: C25-01788

CASE NAME: JOSEPH MURPHY VS. LIBERTY UNION HIGH SCHOOL DISTRICT

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE: JOSEPH J. ZONIES, ESQ.

FILED BY: MURPHY, JOSEPH

TENTATIVE RULING:

Summary

Plaintiff Joseph Murphy ("Plaintiff") filed a Notice of Hearing and Motion for Joseph J. Zonies of Zonies Law LLX, Denver, CO to be admitted as Counsel *Pro Hac Vice*. The Motion is **granted**. No appearance is required at the hearing on June 17, 2026.

Background

On February 11, 2026, Plaintiff filed Notice of Hearing, through Counsel Jennifer R. Liakos, on Verified Application for Admission of Joseph J. Zonies, Esq. to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Joseph J. Zonies. The Proof of Service shows that service was accomplished via U.S. Mail February 11, 2026, and included the State Bar of California. The Court did not receive a timely opposition from Defendant Liberty Union High School

District, or its counsel, Amber Smith, Esq.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Joseph J. Zonies declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Zonies is an attorney licensed to practice in the State Courts of Colorado and before the United States District Court for the District of Colorado. He is employed by Zonies Law LLC and is not a member of the California State Bar, nor is he a resident of the State of California. He does not have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted as *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

1. No timely opposition was filed with the Court. Defendant's motion is **granted**. Joseph J. Zonies, Esq. is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. No appearance is required at the hearing on June 17, 2026.
2. Plaintiff's Counsel is directed to prepare and e-file a proposed order granting conforming to the foregoing ruling no later than five (5) days from the date of this hearing. Counsel is ordered to attach a copy of this tentative ruling to the proposed order.

14. 9:00 AM CASE NUMBER: C25-01899
CASE NAME: BRENTWOOD SUNSET 2010, LLC VS. VIRGINIA PETERSON
HEARING ON SUMMARY MOTION FILED BY PLAINTIFF BRENTWOOD SUNSET 2010
FILED BY: BRENTWOOD SUNSET 2010, LLC
TENTATIVE RULING:

The motion of Plaintiff Brentwood Sunset 2010, LLC for summary judgment, unopposed by any party, is **granted**.

Background

This is a breach of contract action arising from Defendants' failure to pay rent, common area maintenance charges, and tenant improvement loan installments under a commercial lease and two amendments thereto. Plaintiff Brentwood Sunset 2010, LLC is the landlord. Defendant Push Ups 2 Pin Ups LLC was the tenant. Defendants Virginia Peterson and LaTasha Renee are personal guarantors of the lease and both amendments.

On July 2, 2025, Plaintiff filed this action for breach of lease and personal guarantee. On February 7, 2026, Plaintiff filed this motion for summary judgment or, in the alternative, summary adjudication.

The motion was served on Defendants by email through their then-counsel on February 18, 2026. Defendants did not file an opposition. On June 17, 2026, Defendants filed a substitution of attorney and are now self-represented.

Legal Standards on Summary Judgment

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).)

A plaintiff as the moving party does not need to disprove the defendant's defenses; a plaintiff moving for summary judgment meets its burden of showing there is no defense to the claim if it proves each element of the cause of action that would entitle the plaintiff to judgment on that cause of action in its favor. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849, 853; *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241; Code Civ. Proc. § 437c(p)(1).) "Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.

Analysis

Plaintiff brings this action against Defendant Push Ups 2 Pin Ups LLC for breach of the Office Lease Agreement and its amendments, and against Defendants Virginia Peterson and LaTasha Renee for breach of their personal guarantees. Peterson and Renee each guaranteed the original lease, the First Amendment, and the Second Amendment, rendering them independently liable for Defendants' obligations under the lease. Plaintiff moves for summary judgment as to all three Defendants on both grounds.

The elements of a cause of action for breach of contract are (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damage. (*Wall Street Network, Ltd. v. N.Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

The motion sets forth the following supporting facts as undisputed.

Plaintiff Brentwood Sunset 2010, LLC owns commercial property located at 2010 Elkins Way, Brentwood, California. (Plf.'s Separate Statement of Undisputed Material Facts [UMF] No. 1; Strauss Decl., ¶ 2.) On February 4, 2019, Brentwood entered into an Office Lease Agreement with Defendant Push Ups 2 Pin Ups LLC (erroneously sued as Push Ups to Pin Ups LLC) for approximately 7,934 square feet of the property (Lease). (UMF No. 2; Strauss Decl., ¶ 3; Exh. 1.) The lease term commenced October 1, 2019, and ran for 63 months. (UMF No. 3; Strauss Decl., ¶ 4; Exh. 1, ¶ 1.06.) Defendants Virginia Peterson and LaTasha Renee executed personal guarantees for the lease. (UMF No. 5; Strauss Decl., ¶ 6; Exh. 1, p. 35.)

The parties executed two amendments to the Lease. On September 9, 2020, they entered into a First Amendment that adjusted the premises square footage, base rent, CAM charges, and lease term, and provided a Covid-related rent reduction. (UMF Nos. 6-7; Strauss Decl., ¶¶ 7-8; Exh. 2.) Both Peterson and Renee guaranteed the First Amendment. (UMF No. 8; Strauss Decl., ¶ 9; Exh. 2, p. 5.) On March

29, 2022, the parties entered into a Second Amendment that extended the lease term to March 31, 2031, restructured a tenant improvement loan of \$187,076.92 at six percent interest with a 96-month repayment period commencing April 5, 2023, and provided an early termination option. (UMF Nos. 9, 11-12; Strauss Decl., ¶¶ 10, 12-13; Exh. 3, ¶¶ 2.b, 2.d, 2.e, 1.06.) Both Peterson and Renee guaranteed the Second Amendment. (UMF No. 13; Strauss Decl., ¶ 14; Exh. 3, p. 3.)

Beginning in January 2025, Defendants breached the Lease, First Amendment, and Second Amendment by failing to pay rent, CAM charges, and tenant improvement loan installments. (UMF No. 14; Strauss Decl., ¶ 15.) Defendants vacated the property on May 16, 2025. (UMF No. 15; Strauss Decl., ¶ 16.) Brentwood re-let the property on June 1, 2025, for a term of two years. (UMF No. 16; Strauss Decl., ¶ 17.) At that point, unpaid rent totaled \$44,957.37 and unpaid CAM charges totaled \$9,292.14. (UMF Nos. 17-18; Strauss Decl., ¶¶ 17-18; Exhs. 1-3.) Brentwood applied the security deposit, reducing the rent balance to \$34,963.65 and the CAM balance to \$6,194.76. (UMF No. 20; Strauss Decl., ¶ 21; Exhs. 1-3.) The outstanding tenant improvement loan balance is \$150,050.38, plus six percent interest accruing from March 1, 2025. (UMF No. 19; Strauss Decl., ¶ 19; Exhs. 1-3.)

This evidence carries Plaintiff's initial burden of proof with respect to the breach of contract cause of action. It shows the existence of the parties' lease agreement and amendments thereto, Defendants' obligation to pay rent, CAM charges, and tenant improvement loan installments, Defendants' default beginning in January 2025, and resulting damages. The burden thus shifted to Defendants to demonstrate the existence of triable issues of material fact as to any of these elements.

Defendants did not oppose the motion and therefore have not met that burden.

Disposition

Summary judgment is **granted**. Plaintiff shall e-file a proposed order, attaching this ruling, and judgment within 10 days and shall serve and file notice of entry of same.

15. 9:00 AM CASE NUMBER: MSC20-01311
CASE NAME: MICHAEL PRICE VS. STARLIGHT MARINE SERVICES, INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

Summary

Plaintiff Michael Price and Douglas Anderson and the Proposed Class ("Plaintiffs") filed a Motion for Final Approval of Class Action Settlement ("Motion") against Defendant Starlight Marine Services, Inc. ("Defendant") as described herein. The Motion is **granted**. No appearance is required at the June 17, 2026 hearing. A hearing on Plaintiff's Motion for Final Approval of Attorney's Fees is calendared for November 25, 2026

Background

Plaintiffs Michael Price and Douglas Anderson filed a wage and hour class action against Starlight Marine Services, Inc. on July 16, 2020, alleging violations including failure to pay wages and overtime, failure to provide meal breaks, and violations of the California Labor Code and Business & Professions Code. The plaintiffs also pursued claims under the Private Attorneys General Act (PAGA). Following

class certification on August 22, 2024, the Court recognized three subclasses: a Meal Period Subclass, an On-Call Subclass, and a Waiting Time Subclass, comprising captains employed in California during specific periods. The class notice process concluded on October 28, 2024, with only two individuals opting out.

The settlement class includes all captains employed by Starlight Marine Services in California who worked shifts exceeding five hours from July 16, 2016, through February 15, 2021, excluding those who opted out. The class consists of 26 members who worked a total of 2,376 workweeks. The PAGA period covers July 16, 2019, through February 15, 2021. Defendant denies all liability and wrongdoing, contending it complied with California labor laws and that plaintiffs' claims are preempted by federal maritime statutes.

The parties reached a settlement agreement after unsuccessful mediation in June 2022 and subsequent months of negotiations following the class certification ruling. The settlement provides a gross amount of \$280,000, which is non-reversionary. This amount covers class representatives' enhancement awards, administrative costs, PAGA payments, and distributions to class members.

The settlement allocates \$20,000 total in enhancement awards to the named plaintiffs (\$10,000 each), \$3,250 for claims administration fees to Phoenix Class Action Administration Solutions, and \$15,000 for PAGA payments. Of the PAGA payment, \$11,250 goes to the Labor and Workforce Development Agency, while \$3,750 remains in the net settlement amount. After these deductions, the net settlement amount available for distribution to class members is \$245,500.

Individual class payments are calculated based on the number of compensable workweeks each class member worked during the class period. PAGA payments are determined based on the number of pay periods worked during the PAGA period, calculated as 25% of the PAGA payment divided by the total number of PAGA period pay periods worked by all aggrieved employees. The agreement includes a work week dispute resolution process for contested claims.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First,

public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiffs seek \$300,000 in attorney’s fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) The court defers ruling on the attorney’s fees until the hearing on November 25, 2026.

The requested representative payment of \$20,000 (\$10,000 for each plaintiff) is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined “risk” by doing so. Considering all the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**, except for attorney’s fees, which is scheduled for hearing on November 25, 2026 at 9:00 a.m.
2. Plaintiff’s Counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The proposed order shall attach a copy of this ruling.
3. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel is to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
4. No appearance is required at the June 17, 2026 hearing.

16. 9:00 AM CASE NUMBER: N25-2249
CASE NAME: LOS HERMANOS LOPEZ, LLC, VS. EUN EIM
*HEARING ON MOTION IN RE: ATTORNEY FEES

FILED BY: EIM, EUN A

TENTATIVE RULING:

Summary

Defendant Euna A. Eim ("Defendant") Motion for Attorney's Fees as prevailing party against Plaintiff Los Hermanos Lopez, LLC ("Plaintiff") is **continued**, *sua sponte*, to September 30, 2026 at 9:00 a.m, following the resolution of Plaintiff's Motion for Attorney's fees in Case No. N26-0261 to be heard in Dept. 10 on September 24, 2026. Counsel are ordered to meet and confer to resolve the issues underlying the competing motions for attorney's fees in two different cases. No appearance is required on June 17, 2026.

Background

Plaintiff filed an unlawful detainer action against Defendant Ms. Eim seeking to evict her from commercial premises located at 1450 Monument Boulevard in Concord, California. The action was based on non-payment of rent as alleged in a Three-Day Notice to Pay Rent dated October 17, 2025. After a trial on the merits, Judge Leonard Marquez entered judgment on behalf of Defendant. There, Judge Marquez found that Plaintiff was unable to establish an unlawful detainer claim for nonpayment. Plaintiff could not prove that Defendant was in possession without permission, is in default for unpaid rent, was properly served with a written three-day notice specifying the amount due and remains in default after the notice period expires.

The Court found the Three-Day Notice fatally defective for three reasons. First, the notice failed to frame the demand in the alternative as required by law. Instead of giving the tenant the option to "pay or quit," the notice simply stated "Quit and deliver up possession" without the requisite "or" preceding this language. On its face, this constituted an unqualified demand for surrender of the premises rather than a proper election of remedies.

Second, the notice failed to adequately identify the subject premises. The address was not recited in the notice, and the vague references to the business name and lease were insufficient. This deficiency was particularly problematic given trial testimony revealing a discrepancy between the actual portion of the shopping center occupied by the tenant and the unit identifier specified in the lease.

Third, the notice failed to properly specify the notice period. It did not state when it was served, nor did it contain sufficient information to permit an ordinary tenant to reasonably understand or calculate the deadline by which payment had to be made to avoid forfeiture of the leased premises.

Because the Three-Day Notice failed to comply with the strict statutory requirements, the court ruled that plaintiff failed to establish a cause of action for unlawful detainer by a preponderance of the evidence. The court entered judgment in favor of defendant Ms. Eim and against plaintiff Los Hermanos Lopez, LLC on January 9 and 12, 2026, awarding the defendant all relief requested and ordering that plaintiff take nothing by way of the complaint.

Analyses

Code of Civil Procedure section 1032, subdivision (a)(4) defines "prevailing party" as follows:

As used in this section, unless the context clearly requires otherwise: ... (4) Prevailing party" includes ... a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. When any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

Code of Civil Procedure section 1033.5, subdivision (a)(10) provides:

The following items are allowable as costs under Section 1032: ... (10) Attorney fees, when authorized by any of the following: (A) Contract.

The subject lease agreement', paragraph 31 contains an attorney fees clause, which provides:

If any Party or Broker brings an action or proceeding involving the Premises whether founded in tort, contract, or equity, or to declare rights hereunder, the Prevailing Party (as hereafter defined) in any such proceeding, action, or appeal thereon, shall be entitled to reasonable attorneys' fees. Such fees may be awarded in the same suit or recovered in a separate suit, whether or not such action or proceeding is pursued to decision or judgment.

The term, "Prevailing Party" shall include, without limitation, a Party or Broker who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment, or the abandonment by the other Party or Broker of its claim or defense. The attorneys' fee award shall not be computed either in accordance with any court fee schedule, but shall be such as to fully reimburse all attorneys' fees reasonably incurred.

Since Defendant prevailed in this proceeding against the Plaintiff, Defendant appears to meet the test of Code of Civil Procedure section 1033.5, subdivision (a)(10)(A) and the prevailing party definition under paragraph 31 of the subject lease agreement.

As set forth in the declaration of Counsel Shawn Kim, Defendant is seeking an award of attorney fees in the amount of \$11,256.37. This fee request is based on an hourly rate of \$395.00 and for 26.84 hours of time expended. An independent review by the Court finds that these fees are reasonable, given counsel's experience, the hourly rates for area and the time spent defending Defendant in this case.

Plaintiff's Opposition asserts that Defendant's fee request ignores the broader procedural reality that the Court ultimately found that Defendant's failure to meet their obligations under the lease warranted a judgment of possession in favor of Los Hermanos. The Motion seeks to recover attorneys' fees as though the dismissal arising from the First UD Action conclusively resolved the parties entire dispute. Plaintiff established that it is the prevailing party in a second unlawful

detainer action involving Defendant

Plaintiff claims that in the trial between the same parties for unlawful detainer matter in Case No. N26-0261 (the “Second UD Action”), the Court rejected Defendant’s reliance on allegations concerning utility payments and CAM charges. The Court entered judgment in favor of Los Hermanos. Even if the Court is not persuaded by the procedural history of this case, Plaintiff maintains that the fees are unreasonable and must be reduced due to the time spent on the utility-fraud issues.

The Court notes that Plaintiff recovered unpaid rent in the amount of \$67,854.00, interest, cost of suit and attorney’s fees in a judgment signed by Hon. Julia Campins after trial on April 23, 2026 the Second UD Action. Plaintiff, there, is the prevailing party in the unlawful detainer lawsuit. A hearing on attorney’s fees is scheduled for September 24, 2026 in that matter. Plaintiff seeks to recover attorney’s fees in the amount of \$20,222.50. The Court takes judicial notice of the Judgment filed in the Second UD Action, along with the minutes of the trial.

Since the Parties have competing and potentially offsetting attorney’s fees request, the Court orders both counsels to meet and confer to discuss a global resolution. In light of this, the Court finds good cause to make the following orders:

Ruling

1. Defendant’s Motion is continued, *sua sponte*, to September 30, 2026 at 9:00 a.m.
2. Counsel are ordered to meet and confer to resolve the issue of competing attorney’s fees motions in these two cases.
3. No appearance is required at the hearing on June 17, 2026.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY BY DEFENDANT SKINSPIRIT ESSENTIAL, LLC**

FILED BY: DALY, MICHELLE

TENTATIVE RULING:

Summary

Plaintiff Michelle Daly’s Motion to Compel Further Responses to Discovery by Defendant Skinspirit Essential LLC is **granted** as set forth herein.

Background

In this case, Plaintiff alleges medical malpractice against Defendant Michael Vistnes, M.D. and other Defendants arising out of facial laser treatment. Plaintiff alleges that Defendant Skinspirit Essential LLC (“Skinspirit” or “Defendant”) performed a cosmetic Intense Pulse Light (“IPL”) Laser procedure on her face which was not consented to. Skinspirit denied using the IPL on Plaintiff’s face. Plaintiff seeks discovery to obtain electronic information from the IPL device what was alleged used on the date of

Plaintiff's procedure.

Plaintiff served Special Interrogatories Nos. 3, 4, 9 and 11 and Request for Production of Documents Nos. 4, 5 and 7, on Skinspirit on October 2, 2025. While Skinspirit served responses on November 25, 2025, Plaintiff claims that the responses are insufficient, filing this Motion to Compel Further Responses. The Motion is supported by Declaration of Counsel, Separate Statement, Memorandum of Points and Authorities and a Proposed Order.

Skinspirit filed a timely opposition on June 4, 2026 through Counsel Porter Scott. The opposition is supported by a separate statement, memorandum of points and authorities and declaration of Jihan El Saouda.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. The principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Plaintiffs' special interrogatories and request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. Defendant's objections on the grounds that these efforts amount to a "fishing expedition" are overruled.

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, See *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138.

Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, **attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written** correspondence with an invitation to “call me if you should have any further questions or comments,” which Courts have found to be patently insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c).

Here, the record presented to the Court demonstrates that Counsel met and conferred only via written correspondence on the outstanding issues pertaining to the IPL laser device on November 26, 2025 and on January 16, 2026. The Court is not convinced that the Parties have fully complied with Section 2016.040, which requires counsel to talk in person, by telephone or video conference. Counsel are admonished that, for future discovery motions, this is a requirement. Exchanging “meet and confer” letters, while pervasive in the practice, is simply insufficient to comply with these statutory mandates.

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

After reviewing the motions, opposition papers, and applying the foregoing statutory and decisional authorities, the Court finds good cause to make the following rulings and orders.

Ruling

The Court makes the following rulings and orders:

1. Plaintiff’s Motion to Compel Further Responses to Interrogatories:

- No. 3. **Granted**. Defendant’s objections are overruled. However, defendant does not have to provide the model and serial number for the Lumines machine used for Plaintiff’s procedures again. Defendant is required to produce information about all other machines.
- No. 4. **Granted**. Defendant’s objections are overruled. Defendant does not have to provide the model and serial number for the Lumines machine used for Plaintiff’s procedures again. Defendant is required to produce information about all other machines.
- No. 9. **Granted**. Defendant’s objections are overruled.
- No. 11. **Granted**. Defendant’s objections are overruled.

2. Plaintiff’s Motion to Compel Further Responses to Request for Production of Documents:

- No. 4. **Granted**. Defendant’s objections are overruled.
- No. 5. **Granted**. Defendant’s objections are overruled.

- No. 7. **Granted.** Defendant's objections are overruled.
- 3. Further responses, including the documents responsive to the requests, are due no later than ten (10) days from the date of service of this order.
- 4. Plaintiff shall prepare and e-file a conforming order, attaching a copy of this tentative ruling, no later than five (5) days from the date of this hearing and serve the order on Skinspirit.

18. 9:01 AM CASE NUMBER: C24-02649

CASE NAME: FRANCISCO PERLERA VS. FCS US, LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLTFS REQUEST FOR PROD OF DOCS, SET 1**

FILED BY: PERLERA, FRANCISCO MORLAES

TENTATIVE RULING:

Summary

Plaintiff Francisco Perlera's Motion to Compel Further Responses to Request for Production of Documents, Set One, served against Defendant FCA US, LLC is **denied**. Plaintiff's request for Sanctions is **denied**.

Background

Plaintiff Francisco Perlera ("Plaintiff") purchased a 2022 Ram 2500 vehicle (the "Subject Vehicle") manufactured by Defendant FCA US LLC ("Defendant" or "FCA") on September 30, 2021, and subsequently filed causes of action including violation of the Song-Beverly Act.

On July 3, 2024, Plaintiff served Requests for Production seeking documents relating to FCA's internal investigations, analysis, and knowledge of electrical and transmission defects in the Subject Vehicle and comparable vehicles. Plaintiff claims to streamline the Motion to Compel to focus on 28 specific requests most directly tied to liability and willfulness, identified as RFP Nos. 1, 2, 5, 6, 7, 14, 15, 16, 19, 20, 25, 27, 51, 52, 53, 54, 71, 72, 89, 90, 91, 104, 118, 119, 133, 134, 137, and 138. Defendant provided its Responses on April 17, 2025.

Plaintiff contends that FCA has responded by either limiting the scope of discovery to include only the Subject Vehicle, or by claiming an inability to comply based on boilerplate objections. Specifically, Plaintiff alleges FCA has raised objections on "overly broad" and "unduly burdensome" grounds, claimed that it neither "serviced nor sold" the Subject Vehicle, and asserted objections based on "vague and ambiguous" grounds attacking Plaintiff's definitions. Plaintiff asserts that Defendant has failed to provide Code-compliant responses and has not produced all responsive, nonprivileged documents, with responses containing boilerplate objections and refusals to produce documents often without justification.

Plaintiff claims FCA has failed to produce numerous categories of relevant documents, including internal investigation documents related to defects in the 2022 RAM 2500 Unlimited (including "accretion of knowledge" documents preceding decisions to issue TSBs, Recalls, and Campaigns), emails, field reports, and executive reviews regarding performance standards and failure rates, documents related to other consumers' warranty claims and complaints concerning the same defects, EPA and NHTSA communications (including Early Warning Reports, TREAD reports, CAIRs, CSNs, and consumer complaints), emails and ESI documentation, and executive reviews or PowerPoints.

Additionally, Plaintiff alleges FCA has not produced documents regarding the efficacy of TSBs, CSNs, and recalls performed on the Subject Vehicle, nor NHTSA disclosures required under 49 CFR 579.21, including Early Warning Reports, CAIRs, CSNs, complaints, communications, and TREAD Reports.

Defendant FCA US maintains that it has served verified Responses, Amended Responses, and Supplemental Responses to Plaintiff's Requests for Production, and has produced substantial responsive documentation exceeding five hundred pages. This production includes the Cherwell Report, Warranty Claim Report related to the Subject Vehicle, Customer Call Logs (CAIRs), Applicable Safety Recall documents, Customer Satisfaction Notification materials, and Technical Service Bulletins. FCA submits that no further document production is reasonable or appropriate, arguing that simply because Plaintiff alleges nonconformity does not make it so, and not every warrantable repair constitutes a widespread defect. Defendant emphasizes that this is not a class action but a simple lemon law case involving a single 2022 Dodge Ram 2500 vehicle, and therefore Plaintiff is not entitled to class action-level discovery through 142 requests for production.

Defendant relies on recently enacted California Code of Civil Procedure § 871.26, which provides the appropriate scope of discovery in Song-Beverly matters for cases filed after January 1, 2025, and notes that many California courts have entered Case Management Orders (CMOs) for matters filed before that date to define proper discovery scope. Defendant asserts the Court possesses both statutory and inherent authority to limit discovery that is unduly burdensome or expensive, considering the needs of the case and amount in controversy, and argues that simply because information is requested does not render it discoverable.

Defendant argues the California Lemon Law is a remedial statute with a simple burden of proof that does not require plaintiffs to show other consumers made similar complaints or even the cause of the alleged defect. The inquiry is limited to the vehicle at hand and plaintiff's individual circumstances, requiring only that the plaintiff demonstrate a defect covered by warranty that substantially impaired the vehicle's use, value, or safety, and that the manufacturer was unable to repair it after a reasonable number of attempts. Defendant contends Plaintiff demands class action-type discovery that is unnecessary to this burden, violates third-party privacy rights, and is designed solely to burden Defendant with document searches that needlessly drive-up litigation costs in this fee-shifting litigation.

Defendant characterizes Plaintiff's discovery demands as overbearing and oppressive, noting the requests seek information requiring extensive foundation for admissibility and creating an untenable circumstance where Defendant must choose between incurring discovery costs exceeding the case value or settling for more than the case is worth. Defendant insists discovery must be tailored to Plaintiff's actual vehicle rather than seeking documents related to every repair performed on any 2022 Dodge Ram 2500 or other FCA vehicles, deeming such untailored requests disproportionate to the actual dispute. Meanwhile, Plaintiff has attempted to meet and confer with FCA regarding these Requests beginning January 16, 2026, through January 22, 2025, but these efforts proved unsuccessful.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court’s decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. The principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman’s buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Plaintiffs’ request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. However, many of the requests are overbroad and seek potentially a large number of documents that relate to vehicles beyond the Subject Vehicles from potentially third parties and those outside of the possession, custody or control of FCA.

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, See *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138.

In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c). Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, **attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written** correspondence with an invitation to “call me if you should have any further questions or comments,” which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

Here, the record presented to the Court demonstrates that Counsel met and conferred only via written correspondence. There is nothing in the declarations submitted by Counsel that the Parties have complied with Section 2016.040, which requires counsel to talk in person, by telephone or video conference. There is a vague mention of a telephone conference call. Counsel are admonished that, for future discovery motions, this is a requirement. Exchanging letters is simply insufficient to comply with these statutory mandates.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

After reviewing the motions, opposition papers, and applying the foregoing statutory and decisional

authorities, the Court finds good cause to make the following rulings and orders.

Ruling

A. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents from FCA:

1. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

2. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

5. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

6. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

7. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

14. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

15. Denied. This request is overbroad. Defendant's objection is sustained.

16. Denied. This request is overbroad. Defendant's objection is sustained.

19. Denied. This request is overbroad. Defendant's objection is sustained.

20. Denied. This request is overbroad. Defendant's objection is sustained.

25. Denied. This request is overbroad. Defendant's objection is sustained.

27. Denied. This request is overbroad. Defendant's objection is sustained.

51. Denied. This request is overbroad. Defendant's objection is sustained.

52. Denied. This request is overbroad. Defendant's objection is sustained.

53. Denied. This request is overbroad. Defendant's objection is sustained.

54. Denied. This request is overbroad. Defendant's objection is sustained.

71. Denied. This request is overbroad. Defendant's objection is sustained.

72. Denied. This request is overbroad. Defendant's objection is sustained.

89. Denied. This request is overbroad. Defendant's objection is sustained.

90. Denied. This request is overbroad and irrelevant. Defendant's objection is sustained.

91. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

104. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

118. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

119. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order

133. Denied. This request is overbroad. Defendant's objection is sustained.

134. Denied. This request is overbroad. Defendant's objection is sustained.

137. Denied. This request is overbroad. Defendant's objection is sustained.

138. Denied. This request is overbroad. Defendant's objection is sustained.

B. Further production: Defendant is ordered to produce documents that it has represented it would produce, but has not yet produced, no later than ten (10) days from service of this order.

C. Plaintiffs' Request for Sanctions is denied. Each party to pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

D. Defendant is ordered to prepare and e-file a conforming order no later than ten (10) days from the date of this hearing, adopting and attaching a copy of this ruling.

**Law & Motion
Add On**

19. 9:00 AM CASE NUMBER: C24-02496
CASE NAME: FEDERICO BOJORQUEZ VS. HERMINIA MARTINEZ
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant Herminia Martinez's demurrer to the second amended complaint is **sustained with leave to amend** as to all causes of action. Plaintiff shall file and serve a third amended complaint within 10 days from notice of entry of this order.

Plaintiff Federico Bojorquez originally filed this complaint on September 17, 2024. He has amended his complaint several times in response to demurrers by Defendant Herminia Martinez. In the SAC Plaintiff is suing for (1) fraud, (2) declaratory relief and (3) quiet title.

Plaintiff's mother purchased 45 Merrimac Place and in 1991 added Plaintiff and his two brothers to title on the property. (SAC ¶12.) Plaintiff's sister, the Defendant, was not added to title. (SAC ¶¶12-3.)

In September and October 2020, Estela Cuadras and Federico Bojorquez signed a quitclaim deed for the property, giving it to Defendant. The deed was recorded on November 24, 2021. (SAC ¶15 and ex. 2.) On October 20, 2020, Defendant persuaded Plaintiff to sign the quitclaim deed by misrepresenting to Plaintiff that the document was only for refinancing to his benefit. (SAC ¶16.) Plaintiff also alleges that Defendant represented that the quitclaim was to obtain mutually beneficial financing for himself and other owners. (SAC ¶12.) Plaintiff is employed as an agricultural laborer and cannot read or write in Spanish or English. ¶Plaintiff relied on the Defendant to truthfully represent the purpose of the quitclaim deed. (SAC ¶11.)

Plaintiff first discovered the fraud on March 5, 2024 when Defendant first asserted that Plaintiff did not have title, right or other claim to the property. (SAC¶ 7.) Plaintiff filed a complaint with the Contra Costa District Attorney's office on March 5, 2024. (SAC ¶¶8-9 and ex. 3.)

In the Fraud claim, Plaintiff seeks to cancel the deed and restore Plaintiff to title. (SAC ¶13 and SAC p.4:10-13.) In the declaratory relief claim, Plaintiff seeks a declaration that he did not understand or comprehend or intent to grant unconditional title to his trusted sister, the Defendant, but relied on the deed to enable financing to his benefit and it should be used for that purpose only. (SAC p.4:14-22.) In the quite title claim, Plaintiff seeks to quiet title based upon the fraud alleged above and asks that title be restore to Plaintiff and his mother Estela Bojorquez. (SAC 4:23-5:8.) In the prayer for relief, Plaintiff seeks a judicial declaration, quiet title, damages for the time Plaintiff was wrongfully ejected from the property and attorney fees and costs.

As to Leonardo Bojorquez, it is alleged that he notarized the quitclaim deed. (SAC¶ 5.) Plaintiff alleges that Leonardo notarized the quitclaim deed, knowing that Plaintiff did not understand it and

Plaintiff seeks to name Leonardo as a co-conspirator. (SAC ¶14.) Plaintiff seeks damages against Leonardo in the fraud cause of action. Similar allegations were included in the original complaint, but Leonardo was dropped as a Defendant in the FAC.

Defendant demurs to the causes of action based on the failure to allege facts to state a valid cause of action under Code of Civil Procedure section 430.10(e) and also on uncertainty under section 430.10(f). As to the quiet title claim, Defendant also demurs based upon a misjoinder of parties under section 430.10(d).

Fraud

Elements of Fraud

Previously, the Court considered the allegations in the FAC and explained that Plaintiff alleged that Defendant said that she needed to be on title to qualify for refinancing (FAC 7), but the Court also noted that fraud allegations seemed incomplete. “Did Martinez agree to quitclaim the property back to Plaintiff at some future date or just hold the house on his behalf? Or some other promise regarding the property?” The Court then sustained the demurrer with leave to amend on this ground.

The SAC includes similar allegations to the FAC regarding the alleged fraud. Upon further consideration, however, the Court finds that there is a fraud claim based upon the alleged misrepresentation by Defendant along with a consideration of the reasonable inferences from that statement. Plaintiff alleges that Defendant told Plaintiff she needed to be on title to obtain financing for Plaintiff’s benefit. There is a reasonable inference that the title transfer was for financing and not for another purpose, such as giving Defendant the title free and clear. Further, there is inference is that Plaintiff would be permitted to use the property in the same manner as he had been before he signed the quitclaim deed.

The additional requirements for alleging a fraud claim with particularity are also met: Defendant made the statement to Plaintiff around the time Plaintiff signed the quitclaim deed on October 20, 2020. Plaintiff signed the quitclaim deed in reliance on Defendant’s statement that it was to benefit Plaintiff.

Statute of Limitations

The Court must still consider whether the statute of limitations bars the fraud claim. The statute of limitations for fraud is three years. (Code of Civil Procedure section 338(d).) A cause of action under section 338(d) “does not accrue ‘until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.’ [Citation.]” (*Ankoanda v. Walker-Smith* (1996) 44 Cal.App.4th 610, 615.) “The discovery rule delays accrual until the plaintiff has, or should have had, notice of facts sufficient to put a prudent person on inquiry regarding his or her claim. [Citation.] In a cause of action for fraud, the statute of limitations begins to run ‘ “after one has knowledge of facts sufficient to make a reasonably prudent person suspicious of fraud, thus putting him on inquiry” [Citation.]’ [Citation.] [P]laintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an

investigation.’ [Citation.]” (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 900-901.)

“ ‘In order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.’ [Citation.] In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to ‘show diligence’; ‘conclusory allegations will not withstand demurrer.’ [Citation.]’ [Citation.]” (*Id.* at 901.)

Plaintiff signed the quit claim deed in October 2020 and this complaint was not filed until more than three years later. These facts show the possibility that the complaint is barred by the three-year statute of limitations. Thus, in order to avoid application of the statute of limitations, Plaintiff must allege delayed discovery or some other reason why the statute of limitations does not apply.

Here, Plaintiff alleges that he could not read the quitclaim deed and relied on his sister’s and nephew’s explanation of what the document said. Plaintiff has also alleged that he relied on his sister’s explanation of what the document would be used for – obtaining beneficial financing. Plaintiff alleges that he did not actually discover the alleged fraud by Defendant until March 2024 when she tried to evict him. Since Defendant did not attempt to evict Plaintiff until March 2024, Plaintiff has sufficiently alleged facts showing the date of discovery. Further, the fact the Defendant provided false information to Plaintiff in October 2020 provides a reasonable explanation for Plaintiff’s failure to discover the fraud earlier.

The Court agrees with Defendants that there are some inconsistencies in the FAC regarding discovery, it is clear that Plaintiff did not intend to allege he discovered the facts in October 2025 (which is after the original complaint was filed.) Further, it is possible to discover the alleged fraud and submit a complaint on the same day. Finally, Plaintiff’s statement in the complaint to the district attorney’s office is too vague to contradict these allegations.

The Court finds that Plaintiff has alleged sufficient facts to show delayed discovery.

Statute of Frauds

Defendant next argues that the statute of frauds prevents the allegation that the quitclaim deed from an unconditional transfer of property to a property that was transferred for refinancing only. Agreements for the sale of real property or an interest therein generally must be in writing. (Civil Code §§ 1624(a)(3).) There are numerous exceptions to the statute of frauds, however, Plaintiff has not addressed which exception applies here. The demurrer to the fraud claim is sustained with leave to amend for Plaintiff to allege facts showing why the statute of frauds does not apply here.

Declaratory Relief

Defendant argues that the declaratory relief claim fails because it is not an independent controversy and it also fails for the same reasons as the fraud claim.

“[T]he declaratory procedure operates prospectively, and not merely for the redress of past wrongs. It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them. [Citations.]” (*Travers v. Loudon* (1967) 254 Cal.App.2d 926, 931; see also Code of Civil Procedure section 1060.)

Here, Plaintiff seeks a declaration that he did not understand or comprehend or intend to grant unconditional title to the Defendant. That is a declaration of past wrongs. Further, to the extent the declaratory relief claim seeks return of the title of the property to Plaintiff, that claim is covered under the quiet title claim.

The demurrer to the declaratory relief claim is sustained with leave to amend for Plaintiff to allege an actual present controversy that is not entirely duplicative of the other causes of action alleged in the complaint.

Quiet Title

Defendant argues that the quiet title claim has not been properly alleges. A quiet title claim must be verified and must include allegations of: (1) a legal description of the property; (2) the plaintiff's title and basis for title; (3) the adverse claims; (4) the date as of which the determination is sought; and (5) a prayer for determination of title. (Code Civil Procedure section 761.020 (emphasis added).)

Defendant also argues that Plaintiff is trying to quiet title to himself and his mother, but she is not named in the complaint. Further, the Court notes that Plaintiff's brothers are alleged to be prior owners who were also tricked by Defendant, but they are also not named in the complaint.

The Court finds that Plaintiff has not followed the requirements for section 761.020 in multiple ways. Also, Plaintiff cannot seek to add his mother to title without naming her as a party. In addition, Plaintiff needs to name the other parties with potentially adverse claims.

The demurrer is sustained with leave to amend on these grounds. Plaintiff shall amend his claim to meet the requirements of section 761.020. Further, he shall name all interested parties or alleged why a party is no longer interested.

Defendant argues that the statute of limitations bars this claim. “The law is clear that the theory of relief underlying an action for quiet title, in this case fraud or mistake, determines which statute of limitations applies. [Citations.]” (*Ankoanda, supra*, 44 Cal.App.4th at 615.) As explained above, Plaintiff has sufficiently alleged delayed discovery based upon the fraud theory.